
Master Services Agreement



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Date: 10 June 2020

Parties



Background

- A EFG is one of Australia's leading ASX listed healthcare companies. As a service provider to medical and allied health professionals, EFG offers a broad range of medical and related services across its network of pathology and imaging centres across Australia.
- B On 25 September 2019, EFG issued a request for proposal (**RFP**) under which it sought proposals in respect of the business process outsourcing of certain of its functions (including EFG' accounts receivable and general accounting functions).
- C The Supplier responded to the RFP, representing that it is capable of meeting EFG' requirements, as set out in the RFP. In reliance on those representations, EFG has appointed the Supplier to perform the services the subject of the RFP.
- D This Agreement sets out the terms on which EFG has agreed to procure, and the Supplier has agreed to supply, the Services.
- E This Agreement has been structured so that EFG may procure further services from the Supplier in the future, by entering into Statements of Work under this Agreement.

The parties agree

Part A Overview

1 Agreement structure

1.1 Agreement structure

- (a) This agreement consists of the following parts:
 - (i) clauses 1 (**Defined terms and interpretation**) to 39 (**General**);
 - (ii) the Schedules;
 - (iii) any SOWs; and
 - (iv) any document incorporated by reference in:
 - (A) a clause to this agreement;
 - (B) a Schedule to this agreement; or
 - (C) a SOW,(the **Agreement**).
- (b) If there is any inconsistency between the parts of this Agreement set out in paragraph (a), then the part listed higher in paragraph (a) will prevail to the extent of that inconsistency.

1.2 Definitions in the Dictionary

- (a) A term or expression starting with a capital letter:
 - (i) which is defined in Schedule 1 (**Dictionary**), has the meaning given to it in the Dictionary;
 - (ii) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act; and
 - (iii) which is defined in the GST Law, but is not defined in the Dictionary or the Corporations Act, has the meaning given to it in the GST Law.
- (b) The interpretation clause in Schedule 1 (**Dictionary**) sets out rules of interpretation for this deed.

1.3 Statements of Work

- (a) This Agreement is structured as a master agreement under which EFG may engage the Supplier to provide Services under one or more SOWs. As at the Commencement Date of this Agreement or within a mutually agreed timeframe, the following SOWs form part of this Agreement:
 - (i) The BPO Services SOW for Pathology and Imaging, Manila; and
 - (ii) The BPO Services SOW for Pathology, Imaging and Corporate, Chennai.

- (b) If EFG wishes to obtain any services from the Supplier, EFG may:
 - (i) prepare and submit a draft SOW to the Supplier; or
 - (ii) request the Supplier to prepare and submit a draft SOW,

provided that each draft SOW must be in the form notified by EFG from time to time.
- (c) The Supplier must, within 10 Business Days (or such longer period as nominated by EFG), provide to EFG:
 - (i) in the case of paragraph (b)(i), the Supplier's proposed amendments to the draft SOW; or
 - (ii) in the case of paragraph (b)(ii), a draft SOW.
- (d) The proposed Charges in any draft SOW must not exceed the amount calculated by reference to the rates provided for in the Rate Card, if applicable.
- (e) If EFG notifies the Supplier that it requires any changes to the draft SOW, then the Supplier must re-submit the draft SOW to EFG to incorporate such changes reasonably required by EFG.
- (f) Following execution of a SOW, the SOW will be deemed to be incorporated into this Agreement and be subject to the terms and conditions of this Agreement.
- (g) The Supplier has no obligation to provide any services (and EFG will have no liability to pay any Charges for such services) unless those services are described in a SOW that has been duly executed by the parties.

1.4 Non-exclusive supply

- (a) EFG is under no obligation to acquire any minimum volumes of Services or pay any minimum amount of Charges, except to the extent expressly agreed in a SOW.
- (b) Any forecasts provided by EFG are indicative only, and are made without any commitment, representation or warranty by EFG.
- (c) Nothing in this Agreement shall be construed so as to imply that the Supplier has the right to be the sole supplier to EFG of services in the nature of the Services.

1.5 Supplier's due diligence

The Supplier acknowledges and agrees that:

- (a) the Supplier will undertake all necessary due diligence in relation to EFG's business and operations in connection with the provision of Services under this Agreement and applicable SOWs (including for the duration of the Agreement and/or SOW) and that such due diligence includes a consideration of (and acceptance of any risks associated with) any future productivity gains which may be connected with EFG's business and operations; and
- (b) if, during the due diligence process the Supplier identifies material changes that would result in revision in the number of Supplier Personnel or any associated productivity commitments, as a result of reviewing information not already provided, then the parties will have a good faith discussion and the Supplier acting

reasonably shall endeavour to mitigate the commercial impact of any such changes to EFG; and

- (c) upon the successful completion of due diligence and upon execution of SOWs by the parties, the Supplier will not be entitled to seek or otherwise claim any compensation, loss or damage in connection with the matters referred to in clause 1.5(a) above.

2 Conditions precedent

- (a) The obligations of each party under this Agreement (other than clause 25 (**Confidentiality and privacy**)) do not come into force until satisfaction by the Supplier, or waiver by EFG, on or before the Cut Off Date, of the following conditions precedent:
 - (i) receipt by EFG of certificates of currency of the insurance policies referred to in clause 36 (**Insurance**); and
 - (ii) a parent company guarantee in a form acceptable to EFG, acting reasonably,(the **Conditions Precedent**).
- (b) The Supplier must use its best endeavours to satisfy the Conditions Precedent on or before the Cut Off Date.
- (c) The Supplier must promptly notify EFG if it discovers that any Condition Precedent is satisfied or becomes incapable of being satisfied.
- (d) Only EFG may waive a Condition Precedent.
- (e) If any Condition Precedent is not waived or satisfied on or before the Cut Off Date, then EFG may, by giving written notice to the Supplier within 30 days of the Cut Off Date, terminate this Agreement. If EFG terminates this Agreement, this Agreement has no further effect and neither party is liable to the other, except in respect of a breach of paragraph (c).

3 Term

3.1 Agreement Term

- (a) This Agreement commences on the Commencement Date and continues until the later of:
 - (i) the Expiry Date (or the date of termination, if this Agreement is terminated in accordance with its terms before the commencement of any Further Term);
 - (ii) the end of any Further Term (or the date of termination, if this Agreement is terminated in accordance with its terms after the commencement of the Further Term); and
 - (iii) the end of the last occurring Disengagement Period (if any),(**Agreement Term**).

- (b) EFG may extend this Agreement on the same terms and conditions for a period up to the Further Term each, by giving the Supplier at least 6 months' notice before the Expiry Date. Any such extension shall be subject to the operation of clause 11.6 (**Cost of living adjustment**).

3.2 SOW Term

- (a) Each SOW commences on the SOW Commencement Date and continues until the later of:
 - (i) the Initial SOW Term (or the date of termination, if this Agreement is terminated in accordance with its terms before the commencement of any Extended SOW Term);
 - (ii) the end of any Extended SOW Term (or the date of termination, if this Agreement is terminated in accordance with its terms after the commencement of the Extended SOW Term); and
 - (iii) the end of the last occurring Disengagement Period (if any),**(SOW Term)**.
- (b) Where specified in a SOW, EFG may extend the term of that SOW for one or more Extended SOW Terms by giving the Supplier at least 3 months' notice before the end of the Initial SOW Term or Extended SOW Term (as applicable). Any such extension shall be subject to the operation of clause 11.6 (**Cost of living adjustment**). To the extent any SOW is valid for SOW Term which is beyond the Agreement Term, the provisions of the Agreement will continue to apply to such SOW till the expiry or termination of such SOW Term as if the Agreement is still valid.

3.3 Supplier Group Members

- (a) EFG may agree to procure Services from a Supplier Group Member, under the terms of this Agreement, by executing a SOW with that Supplier Group Member.
- (b) The Supplier unconditionally and irrevocably guarantees the due and punctual performance, observance and compliance by the Supplier Group Member of all its obligations under this Agreement.

4 Benefit of this Agreement

- (a) Each EFG Group Member will be bound by, and entitled to the benefit of, the terms of this Agreement, as though references in this Agreement to "EFG" were references to that EFG Group Member. For the purposes of allowing each member of the EFG Group to obtain the benefit of this paragraph (a), EFG enters into this Agreement on trust for each EFG Group Member.
- (b) EFG will:
 - (i) ensure that all relevant EFG Group Members comply with the relevant terms of this Agreement;
 - (ii) be liable for the acts or omissions of all relevant members of the EFG Group as fully as if they were EFG' own acts or omissions; and

- (iii) have the sole right to bring any Claim that a EFG Group Member may have against the Supplier under this Agreement and will use best endeavours to prevent a EFG Group Member from bringing a Claim against the Supplier under this Agreement.
- (c) Any losses suffered by a EFG Group Member in connection with this Agreement will be deemed to be Losses suffered by the EFG and therefore recoverable by EFG. For the purposes of calculating such Losses, the warranties, indemnities and other obligations of the Supplier under this Agreement are warranties and indemnities given, and obligations owed, to EFG and each EFG Group Member.
- (d) The Supplier must not bring any Claim against a EFG Group Member (other than EFG) in relation to any Losses under this Agreement, unless it is a counter-claim or defence of any action brought against the Supplier by the EFG Group Member.
- (e) If:
 - (i) a EFG Group Member is receiving any Services under this Agreement;
 - (ii) EFG changes (or notifies the Supplier that it intends to change) its business structure by divesting, selling or reorganising or otherwise dealing with its interest (**Restructure**) in such EFG Group Member (an **Exiting Entity**); and
 - (iii) EFG or the Exiting Entity wishes for the Exiting Entity to continue receiving services from the Supplier after the Restructure,

then the parties agree that:

 - (iv) the Exiting Entity can continue to receive Services under this Agreement for up to 12 months after the Restructure and the provisions of this Agreement which refer to "EFG Group Member" will continue to apply to the Existing Entity;
 - (v) at the end of the period, Supplier will provide reasonable assistance requested by EFG to transition the Exiting Entity out of this Agreement;
 - (vi) the Supplier agrees to offer to enter into an agreement (including taking steps to negotiate in good faith in relation to the terms of that offer) with the Exiting Entity (or any third party that is procuring an interest in the Exiting Entity) to provide services the same or substantially similar to the Services, on mutually agreed terms to the Exiting Entity (or relevant third party); and
 - (vii) clause 29.4 will not apply in connection with the Exiting Entity ceasing to receive Services under this Agreement, if the Exiting Entity (or any third party that is procuring an interest in the Exiting Entity) has or enters into an agreement with the Supplier for the provision of services the same or substantially similar to the Services.

Part B Services

5 Services

5.1 General

The Supplier must provide the Services to EFG, for the relevant SOW Term, in accordance with this Agreement, including:

- (a) in accordance with any specific requirements of a relevant SOW;
- (b) to meet or exceed the Service Levels;
- (c) in accordance with any EFG Policies;
- (d) in accordance with all applicable Laws; and
- (e) in accordance with EFG' reasonable instructions.

5.2 Performance issues

If the Supplier fails to provide any Services in accordance with this Agreement, then without limiting EFG' rights under this Agreement or at Law, the Supplier must:

- (a) promptly notify EFG of the failure;
- (b) correct the failure as soon as practicable;
- (c) take all reasonable steps to mitigate the consequences of the failure and prevent its reoccurrence;
- (d) where requested by EFG, perform a root cause analysis in respect of the failure and report to EFG identifying the cause, the consequences and the steps the Supplier has taken to prevent its reoccurrence;
- (e) pay any applicable Service Credits to EFG; and
- (f) where requested by EFG, develop a performance improvement plan to EFG' satisfaction (acting reasonably) and, once the performance improvement plan is approved by EFG in writing, implement that performance improvement plan in accordance with its terms.

5.3 Service Credits

Any Service Credits payable by the Supplier are an adjustment to the Charges and are not an estimate of the Loss that may be suffered by EFG as a result of the relevant Service Level failure.

5.4 Performance monitoring

- (a) The Supplier must implement appropriate tools and procedures to detect, measure and report on the Supplier's performance against the Service Levels in real time.
- (b) The Supplier must provide EFG with direct access to its performance reporting tools for audit and inspection purposes.

- (c) All data recorded, generated or stored by the Supplier's performance reporting tools, in respect of the Supplier's performance against the Service Levels, is EFG Data.

5.5 Customer satisfaction

- (a) At EFG' reasonable direction throughout the term, the Supplier will, at its expense, conduct customer satisfaction surveys on those aspects of the Services designated by EFG.
- (b) The Supplier must ensure that the timing, content, scope and method of each customer satisfaction survey is acceptable to EFG (acting reasonably) and, at a minimum, covers a representative sampling of end users and senior management as designated by EFG.
- (c) If the level of customer satisfaction demonstrated by any customer satisfaction survey is too low in EFG' reasonable opinion, at EFG' direction, the Supplier must develop a performance improvement plan to EFG' satisfaction (acting reasonably) and, once the performance improvement plan is approved by EFG in writing, implement that performance improvement plan in accordance with its terms.

6 Documentation

6.1 General

The Supplier must keep and maintain the following information and documentation during the Agreement Term:

- (a) this Agreement;
- (b) detailed design documentation relating to the Services;
- (c) details of the Service Levels and the Supplier's performance against the Service Levels throughout the Agreement Term;
- (d) detailed tracking of the progress of Services against the Milestones;
- (e) details of incidents and issues in relation to the Services or Deliverables;
- (f) any report required to be provided by the Supplier under this Agreement;
- (g) a register of Change Proposals;
- (h) the Supplier's contact details, including details for escalation procedures;
- (i) any other information and documentation required under this Agreement; and
- (j) any other document or report relating to the Services, including sufficient information to enable EFG or its nominees to provide services similar to the Services (or any of them) in the event of termination or expiration of all or some of the Services under this Agreement,

(the **Documentation**). All Documentation is owned by EFG and is EFG' Confidential Information.

6.2 Maintaining Documentation and providing access

The Supplier must:

- (a) keep the Documentation in an electronic format using a secure password protected software based knowledge management system;
- (b) promptly update the Documentation on a real time basis to ensure that they are at all times true and accurate;
- (c) ensure version control of all physical and intangible (including electronic) versions of the Documentation;
- (d) provide EFG with access to the then-current electronic version of the Documentation at all times (i.e. 24x7x365) using a web browser front-end; and
- (e) upon termination or expiry of this Agreement, and at any other time requested by EFG, provide EFG with a complete electronic version of the Documentation.

7 Timetable and delay

7.1 Timelines

- (a) The Supplier must meet each Milestone by its relevant Milestone Date.
- (b) A Milestone will only be successfully achieved once EFG has:
 - (i) issued an Acceptance Certificate in respect of all the Deliverables that comprise the Milestone (or Acceptance of that Deliverable is deemed to have occurred under clause 9.4(b)); and
 - (ii) notified the Supplier that all other tasks and activities corresponding to that Milestone have been successfully performed (as determined by EFG acting reasonably).

7.2 Delays

- (a) If the Supplier becomes aware of any delay (or likely delay) which will (or is likely to) affect the Supplier's ability to meet a Milestone Date, the Supplier must notify EFG as soon as practicable (**Delay Notice**). The Supplier's Delay Notice must contain (to the extent such information is known to the Supplier):
 - (i) the reason for the delay;
 - (ii) its best estimate of the date it will meet the Milestone;
 - (iii) an action plan, including the steps that have been taken and are being taken to manage the delay and its causes;
 - (iv) any anticipated impact on EFG, any EFG Task or other dependencies; and
 - (v) be signed by the Supplier Representative.

For clarity, a Delay Notice will not relieve the Supplier from any of its obligations under this Agreement.

- (b) EFG will consider any Delay Notice in good faith and, if agreed by EFG acting reasonably, will extend any Milestone Date referred to in the Delay Notice (and all dependent Milestone Dates) by the amount of time that the delay occurred having regard to the extent to which:
 - (i) the delay was caused by the failure of a EFG Task (subject to clause 8 (EFG Task)); and
 - (ii) the Supplier has taken all reasonable steps to minimise the delay.
- (c) The parties agree that an extension under paragraph (b) or otherwise agreed between the parties is for the purposes of aiding the management of the delivery of the Services by the Supplier, and does not:
 - (i) constitute a waiver by EFG of any rights it may have in respect of the obligation to achieve the Milestone Date; or
 - (ii) relieve the Supplier of its obligations to meet any original Milestone Dates,
 unless expressly agreed otherwise by the parties (and any such agreement must refer to this clause 7.2(c)).

7.3 Liquidated Damages

- (a) Without limiting any other rights or obligations under this Agreement or at Law, if the Supplier fails to meet a Milestone Date, then, to the extent that the delay is attributable to the Supplier, the Supplier must pay liquidated damages calculated in accordance with the relevant SOW (if any).
- (b) Each party acknowledges that the liquidated damages are a reasonable and genuine pre-estimate of the Loss that EFG will suffer as a result of a delay in meeting a Milestone Date.
- (c) Liquidated damages must be applied against the next invoice provided by the Supplier under this Agreement, or at EFG' option, must be paid to EFG within 30 days of the date on which they accrue.
- (d) For the avoidance of doubt, EFG may agree to waive any such liquidated damages that apply to a particular Milestone Date. However, any such waiver does not act as a waiver of EFG' right to enforce any liquidated damages that would apply to any other Milestone Dates.

8 EFG Tasks

- (a) Subject to paragraph (c):
 - (i) EFG acknowledges that if it delays or does not perform or procure the performance of a EFG Task, the Supplier may be unable to comply with its obligations under this Agreement which are dependent on the EFG Task having been performed; and
 - (ii) if the Supplier is unable to comply with an obligation under this Agreement which is dependent on a EFG Task being performed:
 - (A) the Supplier will be excused for its failure or delay to provide the Services while such EFG Task has not been performed; and

- (B) where the obligation is a timeframe required to be met under this Agreement, then, in accordance with clause 7.2(b)(i), EFG agrees to adjust that timeframe and any dependent timeframe by such period as is reasonable in the circumstances to reflect the delay.

(b) The Supplier must:

- (i) promptly notify EFG of any failure by EFG to perform or procure the performance of the EFG Task; or
- (ii) if the Supplier anticipates that EFG is about to fail to perform or procure the performance of the EFG Task, use its best endeavours to notify EFG of such,

and, in any event, within 3 Business Days of becoming aware of such failure or anticipated failure, or such longer period as mutually agreed, provide to EFG:

- (iii) details of the relevant EFG Task; and
- (iv) the delay that may be caused to the Supplier as a result of the failure of that EFG Task,

and such other information as reasonably requested by EFG.

(c) The parties agree that this clause 8 (EFG **Task**) does not apply:

- (i) to the extent that the Supplier caused or contributed to the non-performance of the relevant EFG Task;
- (ii) to the extent that the Supplier could have avoided its failure to comply by the taking of reasonable precautions or the use of reasonable workarounds; or
- (iii) where the Supplier has failed to provide a notice to EFG as required by paragraph (b).

(d) The parties acknowledge that this clause 8 (EFG **Task**) sets out the Supplier's exclusive rights and remedies in relation to the non-performance of a EFG Task.

9 Acceptance

9.1 General

If specified in a SOW, the Supplier must ensure that each Deliverable that is subject to Acceptance Testing achieves Acceptance by the date required in the SOW.

9.2 Supplier responsibility

- (a) Before the Supplier submits a Deliverable to EFG for Acceptance, the Supplier must ensure that that Deliverable fully conforms to the requirements of this Agreement.
- (b) The Supplier must provide EFG with a written copy of the results of any testing it performed under paragraph (a) when the Supplier submits the relevant Deliverable to EFG for Acceptance.

9.3 Review by EFG

- (a) Following submission of a Deliverable for Acceptance, the Supplier will promptly perform the Acceptance Tests in relation to that Deliverable (unless the SOW specifies that EFG will perform the relevant Acceptance Test or otherwise requested by EFG).
- (b) If the Supplier conducts the Acceptance Tests, the Supplier agrees that EFG may observe any or all of the Acceptance Tests.

9.4 Acceptance Certificates

- (a) EFG will provide the Supplier with an Acceptance Certificate for the relevant Deliverable promptly following the completion of Acceptance Tests to EFG's satisfaction. The date of the Acceptance Certificate will be the Acceptance Date for that Deliverable.
- (b) If EFG does not:
 - (i) issue an Acceptance Certificate;
 - (ii) notify the Supplier that the relevant Deliverable has failed to pass Acceptance Tests; or
 - (iii) notify the Supplier that it is conducting Acceptance Tests in respect of the relevant Deliverable,

within 15 Business Days of the Supplier submitting the relevant Deliverables to EFG for Acceptance, then the Deliverable will be deemed to have been Accepted.

9.5 Failure to satisfy Acceptance Tests

- (a) If a Deliverable fails to pass any Acceptance Tests, EFG may:
 - (i) require the Supplier to rectify or replace the Deliverable (at its own cost) within 5 Business Days (or such other period as may be agreed between the parties) and the process in this clause 9 (**Acceptance**) will be repeated for such rectified or replaced Deliverable;
 - (ii) provide an Acceptance Certificate in relation to the Deliverable subject to the Supplier rectifying any defects identified by EFG within the period specified by EFG; or
 - (iii) provide an Acceptance Certificate in relation to the Deliverable on an "as is" basis subject to the parties agreeing an appropriate reduction to the Charges in relation to the Deliverable.
- (b) The failure of a Deliverable to pass Acceptance Tests on 2 or more occasions constitutes a Material Breach for the purposes of clause 29.1(a) (**Termination for cause**), and EFG may terminate:
 - (i) the relevant SOW to which the Deliverable relates (**Relevant SOW**); and
 - (ii) any other SOW which is dependent on the Relevant SOW, in order for that SOW to be performed or for the full benefit of that SOW to be enjoyed by EFG.

Part C Fees and payment

10 Charges

10.1 Charges

- (a) The Charges are as set out in a SOW and are the only amounts payable by EFG in respect of the Supplier's performance of its obligations under this Agreement.
- (b) Other than as is expressly set out in this Agreement or any SOW, the Supplier is responsible for all its costs and expenses which arise as a result of providing the Services. The Supplier must not charge EFG any expenses in connection with this Agreement (including overhead, travel and accommodation, transportation, living expenses and telecommunication charges).

10.2 Taxes

- (a) The Supplier must pay any taxes payable upon, or in respect of, this Agreement or the performance of the Supplier's obligations under this Agreement wherever and however such taxes arise.
- (b) EFG may withhold any withholding taxes required by Law to be withheld. EFG is under no obligation to pay any additional amounts to the Supplier in relation to any amount withheld. If requested by the Supplier, EFG will use reasonable endeavours to provide any reasonable documentation to the Supplier, in EFG's possession, in respect of the amount withheld.

11 Invoices and payment

11.1 Invoices

- (a) The Supplier must only invoice EFG the applicable Charges. Where a SOW indicates that particular Charges are payable in respect of a Milestone, then the Supplier must not invoice such Charges until that Milestone has been successfully achieved.
- (b) The Supplier must ensure that invoices are provided in the form, and contain the information, reasonably required by EFG from time to time and comply with the requirements for a tax invoice.
- (c) The Supplier must ensure that all invoices are in Australian dollars.
- (d) The Supplier must provide EFG with substantiation reports for invoices at the timing, frequency and in the form EFG reasonably requires from time to time.

11.2 Payment

- (a) EFG must pay correctly invoiced Charges into a bank account in Australia, as notified by Supplier to EFG, within 30 days of the date of the invoice, provided that EFG receives such invoice within 2 Business Days of the date of the invoice.
- (b) Any payment made to the Supplier by EFG does not imply or constitute an acceptance of any Services, an admission on the part of EFG that the Services

have been properly provided or a waiver or release of the Supplier's obligations under this Agreement.

- (c) No interest or late payment fees will be payable in respect of any invoice rendered under this Agreement with remains due but unpaid.

11.3 Disputed Amounts

- (a) EFG may withhold payment of all or any part of an invoice that EFG disputes, in good faith. EFG may only withhold the amount in dispute until the resolution of the dispute and the parties must otherwise continue to comply with their obligations under this Agreement until the dispute is resolved.
- (b) EFG must give the Supplier notice in writing of the disputed invoice as soon as reasonably practicable, and in any event, before the invoice becomes due for payment.

11.4 Set Off

EFG may, by notice to the Supplier, set off against the Charges payable to the Supplier under this Agreement any amount that the Supplier owes to EFG.

11.5 Late invoicing

Unless otherwise approved by EFG at its sole and absolute discretion, the Supplier must not render an invoice for any Services more than 90 days after the date on which the Supplier was first entitled to invoice such amounts.

11.6 Cost of living adjustment

The Supplier may, within 30 days of each anniversary of each Commencement Date, increase the Charges by 4% per year, by notifying EFG in writing of such increased Charges.

12 GST

12.1 Recovery of GST

If one party (**supplying party**) makes a taxable supply and the consideration for that supply does not expressly include GST, the party that is liable to provide the consideration (**receiving party**) must also pay an amount (**GST amount**) equal to the GST payable in respect of that supply.

12.2 Time for payment of GST amount

Subject to first receiving a tax invoice or adjustment note as appropriate, the receiving party must pay the GST amount when it is liable to provide the consideration.

12.3 Indemnity and reimbursement payments

If one party must indemnify or reimburse another party (**payee**) for any loss or expense incurred by the payee, the required payment does not include any amount which the payee (or an entity that is in the same GST group as the payee) is entitled to claim as an input tax credit, but will be increased under clause 12.1 (**Recovery of GST**) if the payment is consideration for a taxable supply.

12.4 Adjustment events

If an adjustment event arises in respect of a taxable supply made by a supplying party, the GST amount payable by the receiving party under clause 12.1 (**Recovery of GST**) will be recalculated to reflect the adjustment event and a payment will be made by the receiving party to the supplying party, or by the supplying party to the receiving party, as the case requires.

12.5 Interpretation

In this Agreement:

- (a) terms used that are defined in the GST Act have the meaning given in that Act, unless the context makes it clear that a different meaning is intended;
- (b) consideration includes non-monetary consideration, in respect of which the parties must agree on a market value, acting reasonably; and
- (c) in addition to the meaning given in the GST Act, the term “GST” includes a notional liability for GST.

Part D Risk management and controls

13 Supplier Personnel

13.1 Supplier Personnel to perform Services

- (a) The Supplier must:
 - (i) ensure that the Supplier Personnel do not represent themselves as being an employee, partner, agent or other representative of EFG;
 - (ii) ensure that the Supplier Personnel comply with all of the Supplier's obligations under this Agreement;
 - (iii) after receiving notice from EFG requiring the Supplier to remove any of the Supplier Personnel (which may be given in EFG's absolute discretion), immediately cease the involvement of those Supplier Personnel in the performance of the Services, terminate such Supplier Personnel's access to EFG Systems and premises and promptly provide replacements suitable to EFG. EFG must provide justifiable reasons for the removal in its notice to the Supplier; and
 - (iv) provide prompt notice to EFG if any of the Supplier Personnel are unable to undertake work in respect of the Services, and comply with any reasonable direction given by EFG, including promptly providing a replacement suitable to EFG.
- (b) If EFG is of the reasonable opinion that a Supplier Personnel is not performing the Supplier's obligations in a satisfactory manner, EFG may direct the Supplier to take reasonable remedial steps in relation to that person or to replace that person with another person approved by EFG (acting reasonably).
- (c) The Supplier must ensure that all Supplier Personnel have the necessary visas and other work permits to carry out their relevant tasks and activities in connection with the Services.
- (d) The Supplier must not engage, employ or otherwise use the services of any person to provide the Services who has:
 - (i) been dismissed from EFG for reasons of misconduct; or
 - (ii) resigned from EFG in circumstances where the person was being investigated by EFG for misconduct.
- (e) The Supplier will be responsible for all acts and omissions of the Supplier Personnel as if they were those of the Supplier.

13.2 Key Personnel

- (a) EFG may at any time by providing notice to the Supplier (including by specifying in a SOW):
 - (i) request the Supplier and Supplier will nominate certain Supplier Personnel as Key Personnel for Key Roles, to be mutually agreed; or

- (ii) advise the Supplier that previously nominated Key Personnel are no longer so nominated and those people will cease to be Key Personnel.
- (b) The Supplier must not:
 - (i) remove (temporarily or permanently) or replace Key Personnel from a Key Role; or
 - (ii) appoint a person as Key Personnel for a Key Role,

without EFG' prior written approval to the Supplier's replacement plan (including the proposed person and replacement timeframe).
- (c) Unless requested to do so by EFG or agreed in writing by EFG, the Supplier will only be entitled to remove or change personnel named as the Key Personnel for a Key Role should they leave the employment of the Supplier, terminate their services contract with the Supplier or be unable to work for the Supplier by reason of illness or incapacity or is dismissed by Supplier for misconduct. EFG acknowledges that the Supplier may provide a talent plan for its Key Personnel, which may provide that a Key Personnel may be reassigned by the Supplier after spending at least 24 months working for EFG.
- (d) Within 20 Business Days of receiving notice from EFG acting reasonably requiring it to do so, or such other period as mutually agreed, the Supplier must remove and replace any person named as a Key Personnel, unless the reason for such a request warrants quicker action from Supplier.
- (e) Any replacement Key Personnel must be of a suitable and at least equivalent level of qualification and experience as outlined in the relevant Key Role criteria. The Supplier must not charge EFG for any time that such replacement may expend in bringing his/her state of project specific knowledge up to the level of the person that he/she replaces.
- (f) The Supplier must notify EFG of the proposed replacement Key Personnel, and:
 - (i) introduce the proposed individual to EFG and allow EFG to interview the individual;
 - (ii) provide EFG with the resume of the proposed individual; and
 - (iii) provide to EFG any other information about the individual reasonably requested by EFG.

13.3 Conduct of background checks

- (a) The Supplier must:
 - (i) conduct criminal history checks on Supplier Personnel (in every country in which the relevant Supplier Personnel resided in the prior 7 years) and clear them to EFG' satisfaction:
 - (A) before providing such Supplier Personnel with the ability to access EFG' premises, EFG Systems, EFG' Confidential Information, EFG Data and any EFG test or development environment; and
 - (B) every 2 years thereafter;

- (ii) conduct other background, security or other checks on, and clear such Supplier Personnel as may be required by EFG from time to time;
 - (iii) where permitted by Law, provide the outcome of such checks to EFG without disclosing the Personnel's underlying data; and
 - (iv) not use any Personnel in the performance of its obligations under this Agreement who do not meet the background check requirements specified by EFG (acting reasonably) from time to time.
- (b) EFG may:
- (i) require the Supplier to report on its compliance with this clause 13.3 (**Conduct of background checks**) and to provide evidence to EFG of clearances;
 - (ii) carry out the background checks referred to in clause 13.3(a) itself; and/or
 - (iii) conduct such other investigations and background checks as EFG considers appropriate.
- (c) The Supplier must provide reasonable assistance as requested by EFG for purposes of EFG exercising its rights under clause 13.3(b).
- (d) The Supplier must obtain any consents required from its Personnel for purposes of any checks to be performed as contemplated by this clause 13.3 (**Conduct of background checks**).
- (e) If the Supplier is unable to obtain any consent from a person, then, unless EFG agrees otherwise in writing, the Supplier must not engage that person to perform, or remove that person from performing, the Supplier's obligations under this Agreement.

13.4 Non-solicitation

- (a) For the Agreement and for a period of 6 months after the expiry or termination of this Agreement:
- (i) the Supplier must not directly or indirectly induce or attempt to induce any of EFG' Representatives or any other Personnel of a EFG Group Member from their employment or engagement with the EFG Group; and
 - (ii) EFG must not directly or indirectly induce or attempt to induce any Personnel of a Supplier Group Member from their employment or engagement with the Supplier Group.
- (b) The restrictions in paragraph (a) will not apply to the engagement of any Personnel who has responded to general recruitment advertising or through a recruitment agency.

14 Subcontracting

14.1 No subcontracting without approval

- (a) Subject to clause 14.1(b), the Supplier must not subcontract to any person, other than to an Approved Subcontractor, the whole or any part of the Supplier's

obligations under this Agreement. As at each SOW Commencement Date, the Approved Subcontractors in respect of that SOW are set out in that SOW.

- (b) If the Supplier wishes to subcontract any part of its obligations under this Agreement, the Supplier must:
 - (i) obtain EFG' written consent to such subcontractor, which may not be unreasonably withheld by EFG; and
 - (ii) provide EFG with:
 - (A) written details of the obligations to be subcontracted;
 - (B) the name and address of the proposed subcontractor; and
 - (C) all other information reasonably requested by EFG in respect of the proposed subcontractor.
- (c) If EFG consents to a proposed subcontractor under paragraph (b), then that person is an Approved Subcontractor for the purposes of this Agreement.
- (d) Clause 14.1(a) does not apply to individuals that are engaged by the Supplier as contractors on a labour hire basis.

14.2 Supplier's responsibility

- (a) The Supplier will not be relieved of any of its liabilities or obligations under this Agreement as a result of the subcontracting of any part of its obligations under this Agreement.
- (b) The Supplier will be liable to EFG for the acts and omissions of an Approved Subcontractor or any Personnel of an Approved Subcontractor, as if they were the acts or omissions of the Supplier.
- (c) The Supplier must ensure that an Approved Subcontractor is aware of, and complies with, all of the terms of this Agreement that apply to the Supplier and that are relevant to that Approved Subcontractor's role in the performance of the applicable obligations.
- (d) The Supplier must ensure that an Approved Subcontractor does not further subcontract, assign or otherwise transfer the performance of the obligations to any other person without EFG' prior consent.

15 Access to premises and systems

15.1 Access to EFG' premises or EFG Systems

When accessing EFG' premises or EFG Systems, the Supplier must:

- (a) only access EFG' premises or EFG Systems for the purposes approved in advance by EFG;
- (b) comply with any EFG Policies in respect of the premises or EFG Systems;
- (c) comply with reasonable directions given to them by EFG from time to time and with the Supplier's own internal security standards.

15.2 Refusal of access

- (a) If a member of Supplier's Personnel does something which if done by the Supplier would not comply with this Agreement, EFG may, for any period, refuse that person access to its premises or EFG Systems.
- (b) If it is appropriate and practicable to do so, EFG will give the Supplier prior notice of the refusal of access under clause 15.2(a).
- (c) The Supplier must replace any member of its Personnel refused access under clause 15.2(a).

15.3 Workplace health and safety obligations

The Supplier must:

- (a) comply with all of its obligations under any applicable Laws relating to safety including the WHS Act, and as set out in this clause 15.3 (**Workplace health and safety obligations**);
- (b) ensure that all Supplier Personnel:
 - (i) comply with the requirements of the WHS Act and WHS Regulation, including as set out in this clause 15.3 (**Workplace health and safety obligations**); and
 - (ii) are suitably trained and equipped to undertake the Services for the Supplier;
- (c) on and from the Commencement Date, be responsible for and assume liability for its obligations assigned to it by the WHS Act and WHS Regulation;
- (d) take reasonable steps to ensure that the Supplier Personnel are not exposed to risks to their health or safety arising from the provision of any Services under this Agreement; and
- (e) promptly inform EFG and the relevant authorities of the occurrences of any serious injury (or any other matter as required by Part 3 of the WHS Act) suffered by any person in connection with the Services or any event which would create a risk for EFG and/or the Supplier Personnel.

15.4 EFG Systems

- (a) Where the Supplier is accessing and / or relying on EFG Systems, the Supplier will inform EFG of any issue that it becomes aware of in respect of the EFG Systems, and will not be held liable for deficiencies therein to the extent that Supplier has informed EFG of such issues and Supplier has not caused or contributed to such issues arising. For the sake of clarity, where Supplier is not aware of issues in EFG Systems, it is not required to inform EFG of such issues, and will not be held liable for deficiencies therein to the extent that Supplier has not caused or contributed to such issues arising.
- (b) If EFG gives any advice, instructions or directions to the Supplier in respect of the EFG Systems and EFG's business processes, then the Supplier:
 - (i) is entitled to rely upon the advice, instructions and directions given; and

- (ii) will not be responsible to EFG in respect of the issues in EFG Systems, EFG' business processes and EFG' instructions provided that the Supplier has complied with the advice, instructions and directions given by EFG.

16 Location

- (a) The Supplier must not perform any Services from or at:
 - (i) a location other than that expressly specified in the SOW; or
 - (ii) if no location is expressly specified in the SOW, a location outside of Australia,
 without EFG' prior written consent.
- (b) The Supplier must notify EFG if it intends to perform any of the Services from a location other than provided for in paragraph (a), prior to doing so. In its notification the Supplier must provide EFG with any information that EFG requires in order to assess the risks to EFG in implementing the proposed location including:
 - (i) details of the proposed location (at an address level) and operations including organisational capability and evidence that the proposed Personnel who will have responsibility for performance of the Services are suitably skilled;
 - (ii) the nature of the Services to be performed at that location;
 - (iii) evidence that the technology, security measures, systems and processes to be used at the proposed location will be sufficient to meet the requirements of this Agreement and compatible with EFG Systems and processes; and
 - (iv) if required by EFG, an independent supply chain audit of such location.
- (c) EFG may require access to any proposed location as a condition of providing consent under this clause 16 (**Location**).
- (d) The Supplier is not discharged from any obligation or liability under this Agreement by an approval granted under this clause 16 (**Location**) and must ensure that it complies with the terms of this Agreement with respect to the approved location. For clarity, any approval granted under this clause 16 (**Location**) will not constitute consent by EFG under clause 25.5(k) unless otherwise expressly stated in EFG' written approval.
- (e) EFG will not be required to pay any costs, Charges or expenses associated with any new location, and the Supplier will pay any reasonable costs and expenses incurred by EFG in connection with any approved new location including any costs associated with EFG obtaining Government Authority approvals in respect of such new location.

17 Disaster Recovery and Business Continuity

- (a) The Supplier must comply with its obligations under Schedule 9 (Business Continuity Plan).

- (b) The Supplier must consult with EFG prior to making any material changes to the Business Continuity Plan or other disaster recovery arrangements and capabilities.

18 Compliance

18.1 Compliance with Laws

The Supplier must, at its own cost:

- (a) comply with all relevant Laws in performing its obligations under this Agreement; and
- (b) ensure that all Services and Deliverables comply with all relevant Laws,

as those Laws exist from time to time. For the avoidance of doubt, and unless otherwise provided for in a Statement of Work, the Supplier is not responsible for determining the requirements of laws applicable to EFG' business, or what EFG must do to comply with such laws in the receipt of Services and Deliverables.

18.2 Compliance with EFG Policies

- (a) The Supplier must comply with each of the EFG Policies.
- (b) EFG may from time to time with reasonable prior notice to the Supplier, notify the Supplier of any addition, removal or change to the then current EFG Policies and the Supplier must, at its own cost, comply with any such additional or changed EFG Policies.

18.3 Standards

- (a) Unless otherwise agreed, the Supplier must, at its own cost, comply (and must ensure that the Services and Deliverables comply) with the Australian standards and international standards, set out in Schedule 4 (**Standards**), as those standards exist from time to time.
- (b) Without limiting clauses 18.1 (**Compliance with Laws**) or 18.2 (**Compliance with EFG Policies**), EFG may from time to time with reasonable prior notice to the Supplier, notify the Supplier of any addition, removal or change to the then current standards referred to in paragraph (a), and the Supplier must, at its own cost, comply with any such additional or changed standards.

18.4 Reputation of EFG

To the extent permitted by Law, the Supplier must not knowingly be involved in or connected with anything that is prejudicial to the goodwill, reputation or overall public image of EFG.

18.5 Anti-bribery and anti-corruption

The Supplier must:

- (a) comply with all applicable anti-bribery and anti-corruption legislation including the *Crimes Act 1914* (Cth) and the *Criminal Code Act 1995* (Cth) or similar Laws of other countries that are applicable;

- (b) maintain and enforce its own policies and procedures, including adequate procedures to ensure compliance with all applicable anti-bribery and anti-corruption legislation; and
- (c) use all reasonable endeavours to ensure that its Personnel, officers, employees and agents comply with this clause.

18.6 Modern Slavery

Without limiting any other provision of this Agreement, the Supplier must:

- (a) not engage in (and take reasonable steps to ensure that in the Supplier's operations and supply chains there are not) any activities, practices or conduct that would:
 - (i) constitute Modern Slavery; and
 - (ii) where the relevant activity, practice or conduct occurs outside of Australia, constitute Modern Slavery if such activity, practice or conduct occurred in Australia;
- (b) notify the EFG as soon as reasonably practicable after it becomes aware of any actual or suspected activity, practice or conduct of the kind described in paragraph (a); and
- (c) provide EFG with all information and records reasonably requested by EFG, in order for EFG to comply with its reporting obligations under the *Modern Slavery Act 2018* (Cth), *Modern Slavery Act 2018* (NSW) and equivalent legislation in the other states and territories and provide such information and records to EFG within 30 days of EFG' request.

Part E Governance

19 Co-operation

19.1 General

The Supplier must in connection with this Agreement (and at no additional cost):

- (a) cooperate with EFG and any Other Suppliers; and
- (b) provide EFG and any of EFG' third parties access to information, personnel, equipment, software, services and facilities,

as required to enable EFG to meet its obligations to third parties, and Other Suppliers to effectively and efficiently provide goods and services to EFG.

19.2 Multi-vendor environment

- (a) The Supplier acknowledges that:
 - (i) EFG has, or may have, in place agreements with Other Suppliers for the provision of goods or services; and
 - (ii) in order for EFG to receive the benefit of the Services, it is essential that the Supplier actively collaborates and co-operates with EFG and Other Suppliers in relation to the performance of the Supplier's obligations under this Agreement.
- (b) The parties acknowledge that it is necessary that the Supplier, EFG and Other Suppliers perform their respective obligations in a coordinated manner so that the Services are delivered in accordance with this Agreement.
- (c) The Supplier must:
 - (i) provide assistance and co-operation (including relevant information) to EFG and Other Suppliers including:
 - (A) as reasonably necessary to enable EFG and Other Suppliers to perform the EFG Tasks;
 - (B) agreeing on procedures with EFG and Other Suppliers for the division of responsibilities in relation to services that may overlap between the Supplier and Other Suppliers; and
 - (C) the provision of reasonable access to documentation and other materials of the Supplier which are used in the performance of the Services that are necessary for EFG and Other Suppliers to provide goods and services to EFG, subject to the Other Suppliers executing a confidentiality agreement with the Supplier, in the form of Schedule 10 (Supplier Confidentiality Agreement);
 - (ii) provide reasonable assistance in relation to the Supplier's knowledge and other information in the possession or control of the Supplier in respect of the Services, as reasonably required by EFG in relation to any legal action taken by EFG against Other Suppliers;

- (iii) provide such assistance to EFG and Other Suppliers as is necessary to:
 - (A) connect or interface any equipment or software to; or
 - (B) make any equipment or the output of any services compatible with, the Deliverables or the Supplier's facilities or systems used to provide the Services;
- (iv) provide EFG and Other Suppliers with reasonable assistance to enable the coordinated resolution of incidents, problems and management of change requests to the extent they relate to the Services;
- (v) provide EFG and Other Suppliers with access to individual Supplier Personnel, at reasonable times and on reasonable notice;
- (vi) participate in training and other familiarisation processes, as requested or provided by EFG, to facilitate the Supplier obtaining the knowledge necessary to receive or use goods or services provided by EFG and Other Suppliers;
- (vii) provide EFG with assistance as reasonably necessary to assist EFG in facilitating resolution of disputes involving Other Suppliers to the extent such disputes relate to the Services; and
- (viii) in performing its obligations under this Agreement, to the extent that it is reasonably practicable for the Supplier to do so in a manner that does not cause the Supplier to breach any of its other obligations under this Agreement, avoid delaying EFG and Other Suppliers in their provision of goods or services.

20 Governance and reports

20.1 Governance model

The parties must comply with the governance model as set out in Schedule 3 (**Governance**) and in each SOW.

20.2 Contract representatives

- (a) The principal point of contact between the parties in relation to this Agreement will be the EFG Representative and Supplier Representative.
- (b) The Supplier Representative is a "Key Personnel" for the purposes of this Agreement. The Supplier must appoint as the Supplier Representative a senior employee of the Supplier acceptable to EFG, and may only replace that appointed person in accordance with clause 13.2 (**Key Personnel**).
- (c) EFG may change the EFG Representative from time to time by reasonable notice to the Supplier.
- (d) The EFG Representative and the Supplier Representative must:
 - (i) manage the working arrangements between the parties under this Agreement;

- (ii) be available (or ensure that their delegates are available) by telephone during business hours on Business Days;
- (iii) monitor and review each party's performance of its respective obligations and responsibilities under this Agreement on an ongoing basis;
- (iv) meet at the frequency set out in Schedule 3 (**Governance**) including to review performance, coordinate the delivery and operation of the Services and discuss future EFG requirements; and
- (v) serve as the principal interface between the parties with respect to all issues relating to this Agreement.

20.3 Reports

Without limiting any reporting requirements set out in this Agreement, the Supplier must:

- (a) provide to EFG each of the reports described in each SOW in accordance with that SOW;
- (b) provide all information reasonably required by EFG in relation to the performance of this Agreement or any SOW;
- (c) unless agreed otherwise, provide monthly progress reports on the Services to EFG; and
- (d) provide such reports as are reasonably requested from EFG from time to time, each in a form reasonably requested by EFG.

21 Continuous improvement

21.1 Service evolution

- (a) The Supplier acknowledges that:
 - (i) the scope and scale of the Services;
 - (ii) the opportunities for improving productivity and reducing costs; and
 - (iii) the technologies and processes required to deliver the Services in the most efficient manner,

will continue to evolve and change over the term of this Agreement.
- (b) The Supplier must work co-operatively with EFG on an ongoing basis to ensure that the Services, and the technologies and processes required to deliver those Services, continue to meet EFG's business requirements as they evolve over time.

21.2 The Supplier to identify opportunities for improvement and innovation

The Supplier must continuously seek to:

- (a) improve the cost efficiencies of the Services;

- (b) enhance the effectiveness and quality of the Services;
- (c) reduce EFG's costs;
- (d) improve the Supplier's performance against the Service Levels; and
- (e) improve capabilities and methods to perform the Services.

21.3 6-monthly innovation report

Without limiting the Supplier's obligations under this clause 21 (**Continuous improvement**), the Supplier must identify and report to EFG every 6 months during the Agreement Term on the following matters, as a minimum:

- (a) the emergence of new and evolving technologies and methodologies which could improve the Services;
- (b) new or potential improvements to the Services including quality, responsiveness, procedures, benchmarking methods, and other performance mechanisms in relation to the Services;
- (c) new or potential improvements to the integration of the Services with other services provided by EFG, other service providers or third parties which might result in efficiency or productivity gains or in reduction of operational risk; and
- (d) changes in business processes and ways of working that would enable the Services to be delivered at lower costs, or provide greater benefits to EFG, or both.

22 Change control

- (a) At any time during the term of this Agreement, EFG or the Supplier may propose a change to this Agreement by submitting to the other party a proposal in writing (a **Change Proposal**). The Change Proposal must be submitted in the form approved by EFG in writing from time to time.
- (b) The Change Proposal must list the requested changes in sequential order, and the Supplier must maintain a register of all Change Proposals and the relevant changes under each Change Proposal. The register must be updated as required and made available for review at each meeting held by the parties in accordance with Schedule 3 (**Governance**).
- (c) Any new or varied Charges in any Change Proposal must not exceed the amount calculated by reference to the rates provided for in the Rate Card, if applicable.
- (d) EFG is not obliged to accept or proceed with a Change Proposal.
- (e) Until such time as a Change Proposal is agreed and executed by both parties, the parties' rights and obligations under this Agreement continue unchanged.
- (f) The parties acknowledge that the mechanism to agree to new services is under the process described in clause 1.3 (**Statements of Work**), and not a Change Proposal.

23 Records and audit

23.1 Supplier to keep proper records

The Supplier must:

- (a) keep (and must ensure that each subcontractor keeps) full and proper books of accounts and records relating to the performance of its obligations under this Agreement during the Agreement Term and for 7 years after the termination or expiry of this Agreement or any SOW (whichever is the later); and
- (b) promptly respond to any requests for information from EFG at any time relating to the performance of obligations under this Agreement.

23.2 Audit

- (a) Subject to clause 23.3(b)(ii) and without limiting any other clause of this Agreement, EFG (or its Representatives) may conduct an audit under this clause 23.2 (**Audit**), no more than once in any calendar year. Such limit on the frequency of audits will not be applicable for any audits:

- (i) required by a Government Authority or Law; or
 - (ii) initiated by EFG to comply with mandatory audit specified under the Law, and

such audits may be conducted for a period of seven years after expiry or termination of this Agreement.

- (b) As part of an audit under this clause 23.2 (**Audit**), EFG or its Representatives who are not Supplier Competitors (or both of them) may enter any premises occupied by the Supplier or any subcontractor with 10 Business Days' notice (or such shorter notice period (including no notice) where required by a Government Authority or by Law), during ordinary business hours, to audit the Supplier and any subcontractors in respect of any matter relating to this Agreement, including:
 - (i) to verify the accuracy of any invoices issued under this Agreement by reference to supporting records (e.g. timesheets);
 - (ii) to examine the performance or provision of the Services; or
 - (iii) to verify the Supplier's performance of its obligations under this Agreement.
 - (c) If EFG provides notice under clause (b), the Supplier must provide EFG or its Representative (or both of them) on request with:
 - (i) access to any premises occupied by it or any subcontractor;
 - (ii) access to (including the right to copy) any books, accounts, records and other documents relating to the provision of the Services and/or performance of the Supplier's obligations under this Agreement (however, the Supplier will not be required to disclose the Supplier's profit margins, confidential information regarding the Supplier's other customers or costs associated with providing the Services);
 - (iii) copies of the documents mentioned in clause 23.2(c)(ii);

- (iv) access to its facilities and systems relating to the provision of the Services and/or performance of the Supplier's obligations under this Agreement;
 - (v) the opportunity to interact with relevant Supplier Personnel relating to the provision of the Services and/or performance of the Supplier's obligations under this Agreement;
 - (vi) the opportunity to interview the Key Personnel relating to the provision of the Services and/or performance of the Supplier's obligations under this Agreement; and
 - (vii) all reasonable assistance relating to the conduct of the audit.
- (d) To the extent permitted by Law, EFG will direct any auditor to comply with the Supplier's security (including Information Security), safety and other site-specific regulations and procedures whilst on the sites of the Supplier.

23.3 Costs and remedying non-compliance

- (a) In respect of any audit:
 - (i) commencing during the Agreement Term, each party will bear its own costs associated with any audit conducted by EFG under this clause 23.2 (**Audit**);
 - (ii) commencing after the end of the Agreement Term, EFG agrees to pay to Supplier the reasonable, pre-agreed costs of the Supplier associated with any such audit; and
 - (iii) the Supplier will ensure that EFG Data (which may require dedicated space on the Supplier's servers) will be stored and retained for a period of seven years after the expiry or termination of this Agreement, subject to EFG bearing the reasonable costs of that storage and retention.
- (b) If an audit shows that the Supplier is not complying with this Agreement in any respect, without limiting any of EFG's rights or remedies in any way:
 - (i) the Supplier must at its own cost and expense:
 - (A) take such action as is necessary to remedy the non-compliance promptly upon receipt of notice by EFG; and
 - (B) demonstrate to EFG's reasonable satisfaction that such non-compliance has been remedied; and
 - (ii) EFG may conduct follow-up audits until the Supplier has demonstrated to EFG's reasonable satisfaction that such non-compliance has been remedied.

24 Dispute resolution

24.1 Disputes

- (a) Any Dispute between the parties must be dealt with in accordance with this clause 24 (**Dispute Resolution**). Nothing in this clause 24 (**Dispute Resolution**)

prevents either party from commencing proceedings at any time for urgent interim relief from a court of competent jurisdiction.

- (b) If a party considers that a Dispute has arisen, it may give a dispute notice to the other party (**Dispute Notice**), which must be in writing and set out reasonable particulars of the Dispute.

24.2 Escalation

- (a) If a Dispute Notice is given under clause 24.1(b), EFG and the Supplier must procure that the EFG Representative and the Supplier Representative promptly meet (and in any event, within 5 Business Days of a party's receipt of a Dispute Notice) and engage in good faith discussions with the bona fide objective of resolving the Dispute by Agreement.
- (b) If the EFG Representative and the Supplier Representative have not been able to resolve the Dispute within 10 Business Days (or such other period as agreed) after the date of the meeting under clause 24.2(a), then either party may refer the Dispute for resolution under paragraph (c) by notice to the other party.
- (c) If either party refers the Dispute for resolution under this paragraph (c), then the Dispute will be discussed at the next occurring Monthly Business Meeting to resolve the Dispute.
- (d) If the Dispute is not resolved following the meeting of the Monthly Business Meeting referred to in paragraph (c), then:
 - (i) within 5 Business Days of the end of the Monthly Business Meeting, each party must nominate a senior executive who has express authority to resolve the Dispute and notify the other party of the identity of that representative;
 - (ii) within 15 Business Days of end of the Monthly Business Meeting, the senior executives nominated under paragraph (d) must meet to seek to resolve the Dispute. All aspects of this meeting must be kept confidential and all communications between representatives at the meeting are made on a without prejudice basis.
- (e) If the Dispute is not resolved within 10 Business Days of the meeting of senior executives referred to in paragraph (d), then either party may refer the Dispute to mediation under clause 24.3 (**Mediation**) by notifying the other party. If the Dispute has not been referred to mediation by either party within 30 Business Days of the meeting of senior executives referred to in paragraph (d), then either party may commence court proceedings in relation to the Dispute.

24.3 Mediation

- (a) If a party refers a Dispute or certain matters for mediation, the Dispute or those matters must be mediated in accordance with, and subject to, the mediation rules of the Resolution Institute (ACN 008 651 232, Level 2, 13-15 Bridge Street, Sydney NSW 2000).
- (b) If within 10 Business Days after referral of the dispute to Resolution Institute the parties have not agreed upon the mediator or other relevant particular, the mediator and any other relevant particular will be determined in accordance with the Resolution Institute's Facilitation Rules as published by the Resolution Institute.

- (c) The parties must co-operate with the Resolution Institute as facilitator. The parties agree that any mediation must be completed within 4 weeks of the appointment of the mediator.
- (d) If the Dispute remains unresolved after the end of mediation, then either party may commence court proceedings in relation to the Dispute.

24.4 Continuation of obligations

Notwithstanding the existence of a Dispute, the parties must continue to perform their obligations under this Agreement.

Part F Information and Data

25 Confidentiality and privacy

25.1 Obligations of confidence

- (a) Each party agrees to keep confidential and not to use or disclose, other than as permitted by this Agreement, any Confidential Information of the other party.
- (b) These obligations of confidence:
 - (i) extend to any Confidential Information provided to or obtained by a party prior to entry into this Agreement.
 - (ii) do not apply to Confidential Information:
 - (A) that is in the public domain otherwise than as a result of a breach of this Agreement or other obligation of confidence; or
 - (B) that is already known by, or rightfully received, or independently developed, by the recipient free of any obligation of confidence.

25.2 Permitted use and disclosures

- (a) Each party may use the Confidential Information of the other party for the exercise of rights or the performance of obligations under this Agreement.
- (b) Each party may disclose Confidential Information of the other party only on a “need-to-know” and confidential basis:
 - (i) with the prior written consent of the other party;
 - (ii) to its officers, agents, professional advisers (including lawyers), employees, contractors, sub-contractors and insurers;
 - (iii) to its Related Bodies Corporate and their officers, agents, professional advisers (including lawyers), employees, contractors, sub-contractors and insurers;
 - (iv) to any auditor appointed under this Agreement; or
 - (v) in the case of EFG only, to third parties whom EFG engages (including Other Suppliers), or is considering engaging, as contemplated by this Agreement, except that EFG agrees not to disclose pricing information of the Supplier,for the exercise of rights or the performance of obligations under this Agreement.
- (c) Each party who discloses Confidential Information of the other pursuant to paragraph (a) must ensure that such information is kept confidential by the recipients on the basis set out in this clause 25 (**Confidentiality and privacy**).
- (d) Notwithstanding anything to the contrary in this Agreement, either party may disclose Confidential Information of the other party where such Confidential Information:

- (i) is required to be disclosed by applicable Law, legal requirement, by a court or Government Authority, provided that, prior to disclosing any such Confidential Information, the party making the disclosure has promptly notified the other party to allow that party to take all reasonable steps to maintain such Confidential Information in confidence; or
 - (ii) is required to be disclosed in accordance with the rules of any stock exchange upon which the securities of the party making the disclosure are listed (including, in the case of EFG, where a EFG Group Member is required to disclose Confidential Information in accordance with the rules of any stock exchange upon which the securities of the EFG Group Member is listed).
- (e) The obligations of the Supplier under this clause 25.2 with regards to Confidential Information will survive for a period of 5 years from the date of disclosure (excluding any Personal Information). Following the expiry of this period, the Supplier must return or destroy EFG' Confidential Information, and comply with any directions given by EFG in this regard.

25.3 Security

Each party must take reasonable steps to protect the Confidential Information of the other party from unauthorised use or disclosure, and in any event steps no less protective than those taken to protect that party's own Confidential Information.

25.4 Publicity

- (a) The Supplier may not make any public statement about this Agreement, or anything related to the subject matter of this Agreement, without the prior written consent of EFG.
- (b) The Supplier may not use any of the EFG Group's names, trademarks or logos without the prior written consent of EFG.
- (c) Paragraphs (a) and (b), will not apply where the Supplier or EFG is required to make a public statement in order to comply with the rules of any stock exchange upon which the securities of any Supplier Group Member or EFG Group Member (as applicable) are listed, provided that, prior to making such statement, the Supplier or EFG consults with the other party regarding the form and content of the statement.

25.5 Privacy

The Supplier must when it collects, uses, discloses or holds Personal Information in the course of performing its obligations under this Agreement:

- (a) collect, use, access, disclose or hold such Personal Information obtained in connection with the Agreement only for the purposes of performing its obligations under this Agreement;
- (b) comply with all applicable Privacy Legislation as if it were a person subject to the Privacy Legislation;
- (c) not do any act or engage in any practice that would breach Privacy Legislation, or which if done or engaged in by EFG, would be a breach of any Privacy Legislation;

- (d) not disclose Personal Information to any other person without the prior written consent of EFG or as expressly required by any Law;
- (e) notify EFG as soon as reasonably practicable after the Supplier receives any:
 - (i) request concerning access to or correction of any Personal Information; or
 - (ii) complaint about the handling of any Personal Information;
- (f) notify EFG as soon as reasonably practicable after the Supplier becomes aware that a disclosure of any Personal Information may be required by Law and, if requested by EFG, prior to any such disclosure:
 - (i) assist EFG to obtain a written legal opinion, from a reputable law firm or senior counsel nominated by EFG (and for which EFG pays), confirming that the disclosure is required by Law; and/or
 - (ii) assist EFG to prevent, resist, object to or limit such disclosure;
- (g) notify EFG immediately if the Supplier becomes aware of any breach or suspected breach of this clause 25.5 (**Privacy**), or of any Data Breach which has occurred or which the Supplier has reasonable grounds to suspect may have occurred;
- (h) promptly provide EFG with any information, assistance and co-operation requested by EFG to allow EFG to investigate such breach or Data Breach and to comply with its obligations under Privacy Legislation, including to allow EFG to understand (where relevant) the affected Personal Information, the individuals to whom that Personal Information relates, and whether any Data Breach would be likely to result in serious harm to those individuals (including any of the matters referred to in section 26WG of the *Privacy Act* 1988 (Cth));
- (i) if the Supplier forms the view that it is or may be required to notify affected individuals of a Data Breach under Privacy Legislation, ensure that:
 - (i) before making any such notification it promptly discusses such matter with EFG in good faith and complies with any reasonable directions issued by EFG in relation to such notification, including as to whether the Supplier or EFG will be the person responsible for fulfilling the relevant notification requirements; and
 - (ii) where EFG determines that the Supplier will be the party responsible for fulfilling the relevant notification requirements, comply with all such notification requirements in accordance with Privacy Legislation;
- (j) comply with all reasonable directions of EFG in relation to the care and protection of Personal Information held in connection with this Agreement or the rights of individuals to access and correct such Personal Information, and take all technical, organisational and other security measures reasonably within the Supplier's power to protect the Personal Information from misuse, interference and loss and from unauthorised access or use, modification or disclosure;
- (k) not disclose or transfer, or permit the disclosure or transfer, of any Personal Information outside of Australia or outside any other location agreed to by EFG, unless it has first obtained the EFG' approval in writing;

- (l) ensure that any of the Supplier's Personnel who are required to deal with the Personal Information for the purposes of the Agreement are made aware of the obligations of the Supplier under this clause 25.5 (**Privacy**); and
- (m) ensure that any Agreement with any Approved Subcontractor contains substantially the same or equivalent obligations to this clause 25.5 (**Privacy**) which are enforceable by the Supplier against the Approved Subcontractor.

26 EFG Data and data security

26.1 General

- (a) The EFG Data is and remains the property of the EFG Group.
- (b) The Supplier must not use EFG Data for any purpose other than performing the Services.
- (c) The Supplier must ensure EFG has access at all times (and without condition or additional charge) to the EFG Data whilst the EFG Data is in the possession or under the control of the Supplier.
- (d) The Supplier must ensure that no EFG Data is transferred, disclosed or accessed outside of EFG Systems and in any event, outside of a location approved under clause 16(a), without EFG's prior written consent.
- (e) The Supplier must:
 - (i) maintain complete, accurate and up-to-date records of its access, collection and editing of any EFG Data, including details of the Personnel, date, time and manner in which such access, collection or editing occurred; and
 - (ii) make such records available to EFG on a real-time basis.

26.2 Backup of EFG Data

Where EFG consents to the Supplier transferring, disclosing, taking, sending, accessing or making accessible any EFG Data outside of EFG Systems, then the Supplier must:

- (a) make backup copies of EFG Data;
- (b) store such backup copies securely; and
- (c) retain such backup copies,

as set out in this Agreement or as otherwise required by EFG from time to time.

26.3 Protection of EFG Data

The Supplier must ensure that any creation, conversion, migration and/or manipulation of EFG Data performed by the Supplier under or in connection with this Agreement does not result in:

- (a) loss;
- (b) corruption; or

- (c) reduction in the accessibility or useability,
of any EFG Data.

26.4 Security and data protection

- (a) The Supplier acknowledges that EFG Data is Confidential Information and is subject to the confidentiality obligations in clause 25 (**Confidentiality and Privacy**).
- (b) The Supplier must maintain and enforce safety and security procedures and safeguards (including procedures and safeguards against the destruction, loss, disclosure, alteration or unauthorised access or use of EFG Data):
 - (i) in accordance with industry practice, including:
 - (A) ISO 27001;
 - (B) Security Standards for the Protection of Electronic Protected Health Information; and
 - (C) Australian Government Information Security Manual; and
 - (ii) that meets the requirements set out in Schedule 6.
- (c) Without limiting clause 26.4(b), the Supplier must:
 - (i) at all times use the most appropriate, sophisticated and up-to-date pro-active security prevention software, including virus detection systems and intrusion detection systems for preventing and detecting Disabling Code;
 - (ii) ensure that any new security procedures, software patches and virus definitions are applied within 24 hours of being issued;
 - (iii) implement practices and procedures that are consistent with industry standards within a reasonable timeframe;
 - (iv) pro-actively advise EFG on measures which EFG should take, or practices and procedures which EFG should implement;
 - (v) at all times pro-actively monitor known security threats (including in relation to Disabling Code); and
 - (vi) promptly inform EFG of any security threats or Disabling Code and the steps necessary to avoid their introduction.
- (d) If the Supplier becomes aware of a breach or potential breach of security, the Supplier must immediately notify EFG and identify the cause of such breach or potential breach, and do all within its power to remedy any breach and prevent any recurrence of such breach.
- (e) The Supplier must not, and must ensure its Supplier Personnel do not, insert or activate, and must use its best endeavours to prevent any third party from inserting or activating, any Disabling Code into any EFG Systems or Deliverables at any time.

- (f) If the Supplier becomes aware that any Disabling Code is found to have been installed, released or otherwise introduced into any of EFG Systems or Deliverables, then the Supplier must notify EFG immediately, and take all reasonable remedial action to eliminate the Disabling Code, prevent re-occurrence and rectify any consequences at its cost.
- (g) In addition to any other rights that EFG may have, if Disabling Code is introduced into a Deliverable or the EFG Systems as a result of the Supplier's breach of paragraphs (c) or (e), then the Supplier must pay the Losses incurred by EFG relating to:
 - (i) identifying and removing the Disabling Code; and
 - (ii) restoring any data lost, damaged or corrupted as a result of the Disabling Code to the last backed-up version of that data and otherwise remedying the impact of the Disabling Code.

26.5 Obligation to notify

The Supplier must notify EFG immediately upon it becoming aware of a security breach:

- (a) at a site from which it provides the Services; or
- (b) related to the Services or this Agreement.

26.6 Restoration of lost EFG Data

In addition to all other rights EFG may have under this Agreement or at Law, if any EFG Data is lost, destroyed, corrupted or altered in connection with the provision of the Services, the Supplier must, at its cost and expense, take all practicable measures and regardless of cost, convenience or technical difficulty, to immediately restore, re- create or remediate EFG Data to the last available backup.

26.7 Return of Information

On termination or expiry of this Agreement for any reason the Supplier must, as requested by EFG:

- (a) provide EFG with a copy of all EFG Data and Confidential Information in the format specified by EFG; and
 - (b) delete any EFG Data and Confidential Information,
- and certify to EFG that it has done so.

27 Intellectual Property and Third Party Claims

27.1 Supplier Material

- (a) The Supplier Material remains the property of the Supplier, or any licensor or supplier to the Supplier, as the case may be.
- (b) If the Supplier incorporates Supplier Material into any Deliverable or otherwise provides any Supplier Material to EFG or a EFG Group Member in connection with the Services, the Supplier grants to EFG and the EFG Group

a non-exclusive, perpetual, irrevocable, royalty-free, world-wide, assignable licence (including the right to sublicense) to use, reproduce, adapt, develop, distribute and exploit the Supplier Material, provided that EFG and the EFG Group may not commercialise the Supplier Material as a standalone product. EFG and each EFG Group Member may permit:

- (i) their Other Suppliers to use the Supplier Material that is incorporated into any Deliverable in order to provide services to the EFG Group; and
 - (ii) their customers and other third parties to use the Supplier Material that is incorporated into any Deliverable in order to receive services from the EFG Group.
- (c) If the Supplier incorporates Third Party Material into any Deliverable or otherwise provides any Third Party Material to EFG or a EFG Group Member in connection with the Services, the Supplier must procure for EFG (by no later than the date on which the Deliverable is provided to EFG):
- (i) rights in respect of the Third Party Material (directly between the relevant third party and EFG and the EFG Group) that are no less extensive than the rights granted to EFG and the EFG Group under clause 27.1(b);
 - (ii) such other licence rights in respect of the Third Party Material as may be expressly specified in a SOW; or
 - (iii) with EFG' prior written consent, such other licence rights in respect of the Third Party Material as agreed in writing by the parties.

27.2 EFG Material

- (a) EFG Material remains the property of EFG, or any licensor or supplier to EFG, as the case may be.
- (b) EFG grants to the Supplier (and its Approved Subcontractors) a non-exclusive licence during the Agreement Term to use the EFG Material solely for the purpose of performing its obligations under this Agreement.

27.3 Created IP

- (a) Unless otherwise agreed in writing or in a SOW, EFG will own all Intellectual Property Rights that are created by the Supplier in the course of providing the Services (**Created IP**), and the Supplier hereby unconditionally assigns, and must procure that all Supplier Group members and the Supplier Personnel unconditionally assign, to EFG:
 - (i) all rights and all Intellectual Property Rights (other than copyright) in all Created IP without the need for further assurance; and
 - (ii) all copyright in the Created IP, as an assignment of future property under section 197 of the *Copyright Act 1968* (Cth) and in equity.
- (b) Where Created IP consists of software, the Supplier must deliver to EFG the object code and the source code of that software.

27.4 Moral Rights

The Supplier must procure from each of the Supplier Personnel who are authors of any copyright material assigned, licensed or otherwise supplied to EFG under this Agreement, a grant of consent and waiver of any Moral Rights in favour of the Supplier to the extent required to enable EFG to fully exercise, exploit and enjoy its ownership or licence rights (as the case may be) granted to it under this Agreement.

27.5 The Supplier's indemnity

- (a) The Supplier releases and indemnifies EFG, each EFG Group Member and their Representatives against any Loss suffered or incurred by them in connection with any:

- (i) Supplier Infringement Claim; or
- (ii) third party claim brought in connection with the Supplier's use of the EFG System in an unauthorized manner,

(together, **Third Party Claim**). This indemnity does not apply to the extent that the Third Party Claim directly results from:

- (iii) EFG, a EFG Group Member or their Representatives' use of the Supplier Material, Created IP, Third Party Material or Services contrary to this Agreement (unless such use was authorised by the Supplier); or
- (iv) any modification of the Supplier Material, Created IP, Third Party Material or the Services made by EFG or its Representatives (unless such modification is envisaged by this Agreement or otherwise authorised by the Supplier).

- (b) The indemnity referred to in paragraph (a) will be granted whether or not legal proceedings are instituted and, if such proceedings are instituted, irrespective of the means, manner or nature of any settlement, compromise or determination.
- (c) The Supplier must immediately notify EFG when the Supplier becomes aware of any Third Party Claim made or likely to be made against EFG or its Representatives, including any details of the alleged infringement.

27.6 Conduct of Supplier Infringement Claims

- (a) Subject to clause 27.6(b), the Supplier must:
- (i) promptly and diligently defend the Supplier Infringement Claim;
 - (ii) keep EFG regularly informed of its progress and strategy for defending the Supplier Infringement Claim;
 - (iii) observe all reasonable directions given by EFG in relation to the defence or to negotiations for settlement of that Supplier Infringement Claim and must not settle such a claim without EFG' prior written consent which will not be unreasonably withheld;
 - (iv) refrain from using EFG or its Representatives' name in the defence or settlement of the Supplier Infringement Claim without obtaining EFG' prior written consent; and

- (v) not take any action or fail to take any action in that defence that would damage the reputation of EFG or its Representatives.
- (b) Notwithstanding paragraph (a), EFG may itself respond, defend, oppose and resolve any Supplier Infringement Claim at the Supplier's expense if:
 - (i) the Supplier fails, for whatever reason, to respond to, defend, oppose and resolve any Supplier Infringement Claim in a manner acceptable to EFG; or
 - (ii) where litigation is commenced against EFG and leave of the court is not granted to EFG to withdraw from the litigation and for the Supplier to conduct the litigation in its own name.
- (c) Where the Supplier defends, settles or otherwise conducts a Supplier Infringement Claim, Supplier will have the sole control in the defence of the Supplier Infringement Claim and EFG will provide reasonable assistance to the Supplier, at the expense of the Supplier.

27.7 The Supplier's actions

In the event of a Supplier Infringement Claim, the Supplier shall, at its own cost and sole discretion:

- (a) procure for EFG or EFG Group Member (as applicable) the licence to continue to use the Services and Deliverables free of the Supplier Infringement Claim;
- (b) use alternative methodologies, work processes and methods to perform the Services in order to avoid any infringement; and
- (c) refund any pro-rata applicable fees and Third Party licence cost incurred to EFG.

27.8 EFG' Indemnity

- (a) EFG releases and indemnifies the Supplier, each Supplier Group Member and their Representatives against any Loss suffered or incurred by them in connection with any claim alleging that any EFG Material, EFG Systems or EFG Data or their use or possession by the Supplier or Supplier Group Member or their Representatives as applicable (**EFG Infringement Claim**), infringe the Intellectual Property Rights of any person. This indemnity does not apply to the extent that the EFG Infringement Claim directly results from:
 - (i) the Supplier, a Supplier Group Member or their Representatives' use of the EFG Material, EFG Systems, or EFG Data contrary to this Agreement (unless such use was authorised by EFG); or
 - (ii) any modification of EFG Material, EFG Systems, or EFG Data made by the Supplier or its Representatives (unless such modification is envisaged by this Agreement or otherwise authorised by EFG).
- (b) EFG must immediately notify the Supplier when EFG becomes aware of any EFG Infringement Claim made or likely to be made against the Supplier or its Representatives, including any details of the alleged infringement.

- (c) Where EFG defends, settles or otherwise conducts a EFG Infringement Claim, EFG will have the sole control in the defence of the EFG Infringement Claim and the Supplier will provide reasonable assistance to EFG, at the expense of EFG.

Part G Suspension and termination

28 Suspension

- (a) EFG may at any time, by notice to the Supplier, suspend any or all aspects of this Agreement (including one or more SOWs) by such period as EFG considers necessary (**Suspension Notice**).
- (b) If EFG serves a Suspension Notice, then:
 - (i) both parties will be relieved from their obligations under this Agreement for the period specified in the Suspension Notice, except that EFG will be liable to pay for any of the Supplier's resources who are dedicated to perform the Services, as specified in a SOW; and
 - (ii) the Supplier must recommence the affected supply of the Services by the date specified in the Suspension Notice or as otherwise directed by EFG.

29 Termination

29.1 Termination by EFG for cause

Without limiting EFG' rights or remedies under this Agreement or at Law, EFG may terminate this Agreement (or one or more SOWs) as a whole or in part immediately by notice to Supplier, if one or more of the following events occurs:

- (a) where Supplier causes a Material Breach which is:
 - (i) incapable of remedy; or
 - (ii) capable of remedy, and the Supplier fails to remedy that Material Breach within 15 Business Days after receipt of a notice from EFG requiring the Supplier to remedy that Material Breach;
- (b) a Supplier Infringement Claim occurs and either:
 - (i) the matters alleged in the Supplier Infringement Claim are (in either of the parties' reasonable opinion) substantially true; or
 - (ii) the relevant third party commences court proceedings in respect of the Supplier Infringement Claim;
- (c) a SOW Termination Trigger occurs;
- (d) a Conflict of Interest arises which in the reasonable opinion of EFG adversely affects EFG' rights or the Supplier's ability to perform its obligations under this Agreement;

- (e) an Insolvency Event occurs in respect of the Supplier or any of its Related Bodies Corporate;
- (f) if there is a Change of Control of any entity in the ownership chain beginning with the Supplier's ultimate parent company and ending with the Supplier (other than where the Supplier has obtained EFG's prior consent, which must not be unreasonably withheld); or
- (g) the Supplier does anything that materially damages or is likely to materially damage the reputation of or any brand of EFG.

29.2 Termination by EFG for convenience

- (a) EFG may terminate this Agreement (or one or more SOWs) as a whole or in part, without liability, by giving the Supplier at least 6 months' notice.
- (b) If EFG exercises its rights under paragraph (a) or if clause 29.4(d) applies, it must pay to the Supplier:
 - (i) the liquidated amount, if any, that relate to the Supplier's recovery of its investment and cost, as specified in each terminating SOW as being due following EFG's termination for convenience and if no such liquidated amount is specified in that SOW, this amount will be calculated as follows:

$$\frac{FTE(Reduced)}{FTE(Total)} \times C \times \frac{MONTHS(Remaining)}{MONTHS(Total)}$$

where:

FTE(Reduced) means the number of full time equivalent staff (in respect of which Charges are payable) that are reduced as a result of the termination for convenience event

FTE(Total) means the total number of full time equivalent staff in respect of which Charges are payable at the Commencement Date

C means the Supplier's one-off **Investment Costs**, as set out in the relevant SOW

MONTHS(Remaining) means the number of whole months remaining in the Agreement Term or SOW Term (as applicable) at the time of the termination for convenience event

MONTHS(Total) means the total number of months in the Agreement Term or SOW Term (as applicable).

- (ii) wind down charges equivalent to 3 times the average monthly Charges paid by EFG to Supplier in respect of the particular Service, calculated by reference to the average monthly Charges paid in the 6 months immediately preceding the date of notice of termination.

29.3 Termination by Supplier for cause

The Supplier may terminate:

- (a) this Agreement as a whole, immediately by notice to EFG, if an Insolvency Event occurs in respect of EFG; or

- (b) a SOW, as a whole, by notice to EFG, if:
 - (i) any Charges due and payable by EFG in an amount greater than the immediately preceding 2 months average billing under this Agreement are more than 15 Business Days overdue and there is no dispute between EFG and the Supplier in relation to such Charges. Example: If the invoice for Dec 2020 is AUD 100,000 pending while the average billing of immediately preceding two months is AUD 50,000 (i.e. Oct and Nov 2020 is AUD 40,000 and AUD 60000 respectively) then since Dec 2020 invoice is greater than average billing of immediately preceding 2 months 29.3 b (i) shall apply;
 - (ii) after the expiry of the 15 Business Days referred to in clause 29.3(b)(i), the Supplier has issued a notice to EFG stating:
 - (A) it is a notice for the purposes of this clause 29.3(b);
 - (B) the Charges are more than 15 Business Days overdue;
 - (C) the overdue Charges and the relevant SOW(s) and invoices(s) under which the Charges are due and payable; and
 - (D) the Supplier's intention to terminate if EFG does not pay the overdue amount within 15 Business Days after the date of the notice; and
 - (iii) EFG fails to pay to the Supplier, within 15 Business Days after the date of the notice referred to in clause 29.3(b)(ii), the relevant Charges.

The parties acknowledge that the termination rights set out in this clause 29.3 (**Termination by Supplier for cause**) are an exhaustive statement of the Supplier's rights to terminate this Agreement and each relevant SOW.

29.4 Partial Termination

- (a) A reference to termination of this Agreement or a SOW "*in part*" in this clause 29 (**Termination and expiry**) means termination of one or more Services or termination of particular parts of one or more Services as determined by the party exercising the termination right.
- (b) If EFG exercises a right to terminate this Agreement or one or more SOWs in part, EFG must specify:
 - (i) appropriate variations to the remaining portion of this Agreement; and
 - (ii) how the rights and obligations in clause 30 (**Disengagement**) will be implemented by the Supplier in respect of the terminated Service.
- (c) If at any time EFG considers that any aspect of the termination of one or more Services (or parts thereof) is not proceeding to its satisfaction, it may by notice to Supplier terminate a SOW or this Agreement in its entirety.
- (d) If EFG directs the Supplier to reduce the resources in connection with the Services under this Agreement (based on full-time equivalent (**FTE**) staff in respect of which the Charges are payable) by:
 - (i) 15% or more in one instance;

- (ii) 25% or more in aggregate within a six-month period; or
- (iii) 50% or more within a one year period,

shall be deemed a partial termination for convenience by EFG, and EFG must pay to the Supplier:

- (iv) where a liquidated amount is specified in the relevant SOW, that amount pro-rated based on the reduction in resources (for example, if EFG directs the Supplier to reduce relevant resources by 60%, then the amount payable by EFG will be 60% of the liquidated amount);
- (v) where a liquidated amount is not specified in the relevant SOW and the formula set out in clause 29.2(b)(i) applies, the amount calculated under that formula; and
- (vi) the amount specified in clause 29.2(b)(ii), pro-rated based on the reduction in resources (for example, if EFG directs the Supplier to reduce relevant resources by 60%, then the amount payable by EFG will be 60% of the amount otherwise calculated under clause 29.2(b)(ii)).

The relevant percentages referred to in paragraphs (i), (ii) and (iii) shall be calculated:

- (vii) based on the actual number of full time equivalents (**FTEs**) at the beginning of the relevant period referred to in paragraphs (i), (ii) and (iii) (as relevant); and
- (viii) excluding any reduction in FTEs as a result of productivity improvements.

For the avoidance of doubt, this paragraph (d) will apply in the event of a Force Majeure.

29.5 Consequences of expiry or termination

- (a) Except as set out otherwise in this Agreement, the expiry or termination of this Agreement does not affect:
 - (i) either party's rights in respect of any breach of this Agreement occurring before expiry or termination;
 - (ii) the obligations of the parties to make a payment or perform any other act under this Agreement which was due before expiry or termination; and/or
 - (iii) each perpetual licence granted by Supplier under this Agreement, which will continue in full force and effect.
- (b) If EFG terminates this Agreement under clause 29.1 (**Termination by EFG for cause**), without limiting any other right under this Agreement or at Law, EFG may suspend making any payment due to Supplier under this Agreement.
- (c) If EFG terminates this Agreement under clause 29.1 (**Termination by EFG for cause**) or 29.2 (**Termination by EFG for convenience**), without limiting any other right under this Agreement or at Law:
 - (i) EFG may recover from Supplier all money paid to it for Services not yet completed or provided;

- (ii) EFG will only be liable for payment for the Services carried out to the effective date of termination along with applicable termination fees in accordance with clause 29.2(b); and
- (iii) EFG may require Supplier to immediately assign to EFG all subcontracts in relation to the Services.
- (d) EFG will promptly pay any net amount due to Supplier after it has exercised its rights under clauses 29.5(b) to 29.5(c)(iii) inclusive.
- (e) The expiry of this Agreement will not affect any SOWs in existence at the date of expiry.
- (f) If EFG has the right to terminate a SOW under this Agreement, then EFG may, at the same time that it terminates such SOW, also terminate any other SOW under this Agreement.

29.6 Survival

Clauses 10.2(b), 13.4 (**Non-solicitation**), 23 (**Records and audit**), 24 (**Dispute resolution**), 25 (**Confidentiality and privacy**), 26 (**EFG Data**), 27 (**Intellectual Property**), 29 (**Termination**), 30 (**Disengagement**), 33 (**Indemnities**), 34 (**Liability**), 36 (**Insurance**) and 39 (**General**) and any other provisions which are expressed to survive or by their nature impose continuing obligations on the relevant parties, will survive the termination or expiry of this Agreement.

30 Disengagement

30.1 Planning for Disengagement

- (a) No later than 90 days after the Commencement Date, the Supplier must:
 - (i) in consultation with EFG, prepare a draft, detailed plan to achieve an orderly and staged transition of the Services (in whole or in part) from the Supplier to EFG or one or more third parties nominated by EFG (**Disengagement Plan**); and
 - (ii) submit the draft Disengagement Plan to EFG for its review and Acceptance in accordance with clause 9 (**Acceptance**).
- (b) Once the draft Disengagement Plan submitted by the Supplier is Accepted by EFG under clause 9 (**Acceptance**) it will be the Disengagement Plan for the purpose of this Agreement.

30.2 Updating the Disengagement Plan

- (a) The Supplier must ensure that the Disengagement Plan remains current throughout the Agreement Term.
- (b) Without limiting clause 30.2(a), the Supplier must (in consultation with EFG) review and update the Disengagement Plan:
 - (i) promptly following any of the following events:
 - (A) any new SOW is executed under this Agreement;

- (B) no less than 90 days before any SOW is due to expire; and
 - (C) a notice of termination is provided by either party under this Agreement.
- (c) If the Supplier proposes a change to the Disengagement Plan it must submit an updated draft of the Disengagement Plan to EFG for its review and Acceptance in accordance with clause 9 (**Acceptance**).
 - (d) Once the updated draft Disengagement Plan submitted by the Supplier passes Acceptance Testing by EFG under clause 9 (**Acceptance**) it will be the Disengagement Plan for the purpose of this Agreement.

30.3 Disengagement Services

- (a) If one or more Services or any part of any Service expires or is terminated for any reason, then, at EFG' request, the Supplier must provide:
 - (i) the Disengagement Services; and
 - (ii) the Disengaged Services, to at least the same standard and quality that the Supplier was required to provide such Services before the Disengagement Commencement Date (including by using all reasonable endeavours to minimise any disruption and disturbance to EFG),

on and from the relevant Disengagement Commencement Date for the period nominated by EFG, acting reasonably, which may not exceed 1 year, or such other period as may be mutually agreed (**Disengagement Period**).

- (b) EFG may, by notice to the Supplier, elect to:
 - (i) begin the Disengagement Period prior to the expiry or termination of the Agreement or relevant Service; or
 - (ii) extend any Disengagement Period one or more times for such period(s) as EFG nominates, provided that the Disengagement Period in respect of any particular Disengagement Services does not exceed 1 year, or such other period as may be mutually agreed, in total.
- (c) If the Supplier exercises its right to terminate under clause 29.3(b), then the Supplier will not be obliged to perform any Disengagement Services until EFG has paid to the Supplier:
 - (i) all overdue Charges; and
 - (ii) a reasonable amount (which may not exceed 3 times the average monthly Charges paid by EFG to Supplier in respect of the particular Service, calculated by reference to the average monthly Charges paid in the 6 months immediately preceding the date of notice of termination) as advance payment for Disengagement Services to be performed by the Supplier.

30.4 Fees for Disengagement Services

- (a) The Supplier will be entitled to:
 - (i) subject to paragraph (b), charge fees for Disengagement Services calculated in accordance with the Disengagement Plan; and

- (ii) charge the Charges for the Disengaged Services in the same manner that it was entitled to charge for such before the Disengagement Commencement Date.
- (b) The Supplier may not charge fees for Disengagement Services if EFG terminated the Agreement or a SOW for cause under clause 29.1 (**Termination by EFG for cause**).

Part H Remedies

31 Representations and warranties

31.1 Standard representations and warranties

Each party represents and warrants to the other party during the Agreement Term that:

- (a) it has full power and authority to enter into, perform and observe its obligations under this Agreement;
- (b) it has taken all necessary action to authorise the execution, delivery and performance of this Agreement in accordance with its terms;
- (c) the execution, delivery and performance by it of this Agreement does not and will not violate:
 - (i) any Law, authorisation, ruling, consent, judgment, order, official directive or decree of any Government Authority;
 - (ii) its constitution or other constituent documents; or
 - (iii) any encumbrance, undertaking or document which is binding upon it or on any of its assets;
- (d) this Agreement constitutes its legal, valid and binding obligations and is enforceable in accordance with its terms subject to any necessary stamping and registration requirements and to equitable principles and Laws generally affecting creditors' rights; and
- (e) it will comply with all Laws applicable to it in performing its obligations under this Agreement.

31.2 Supplier's representations and warranties

The Supplier represents and warrants to EFG on a continuing basis that:

- (a) prior to entering into each SOW:
 - (i) it has had the opportunity to conduct appropriate due diligence in respect of that SOW;
 - (ii) it has conducted its own review of the information made available by EFG, without reliance on EFG; and
 - (iii) has satisfied itself in respect of the risks in entering into that SOW;
- (b) as at the Commencement Date, no litigation, arbitration, mediation, conciliation or administrative proceedings are taking place, pending or threatened which, if adversely decided, could have a material adverse effect on its ability to perform its obligations under this Agreement;
- (c) as at the Commencement Date, the information that the Supplier provided to EFG was true and correct;

- (d) the Services will be performed:
 - (i) with due care and skill, in a proper and professional manner and in any case in accordance with industry practice and fit for the purpose stated or otherwise contemplated in the SOW;
 - (ii) in a manner so as to cause the least possible disturbance or disruption to EFG; and
 - (iii) in accordance with all reasonable directions given by EFG or EFG' Representatives,

and the parties agree that the Supplier has the opportunity to remedy any breach of this warranty under clause 29.1(a)(ii) before EFG may exercise its right to terminate under clause 29.1(a) for breach of this warranty;

- (e) it has all necessary resources (excluding any EFG Tasks) in order to perform its obligations under the Agreement;
- (f) the EFG Tasks are the only tasks or activities which the Supplier requires EFG to perform, in order that the Supplier may perform the Services;
- (g) it, and each of the Supplier Personnel, will have all the necessary licences, certifications, approvals, credentials, expertise and consents necessary to perform its obligations under the Agreement;
- (h) it, and each of the Supplier Personnel, has the level of skill, knowledge, experience and ability which may be expected of a professional organisation or individual, as applicable, experienced in providing products and services of the type and complexity of the Services;
- (i) in the conduct of its business including the supply of Services to EFG or any other customer, the Supplier will not engage in conduct that is unlawful or dishonest or otherwise inconsistent with the standards expected of a good corporate citizen;
- (j) each Service and Deliverable will:
 - (i) comply with all relevant Laws;
 - (ii) be of merchantable quality and free from defects;
 - (iii) be suitable for its intended purpose; and
 - (iv) be interoperable with each other Service and Deliverable and the EFG Systems, and

and the parties agree that the Supplier has the opportunity to remedy any breach of this warranty under clause 29.1(a)(ii) before EFG may exercise its right to terminate under clause 29.1(a) for breach of this warranty;

31.3 Implied Warranties

- (a) Unless expressly stated otherwise in this Agreement, all guarantees, warranties or other terms and conditions implied or imposed by any legislation are excluded from this Agreement to the maximum extent permitted by Law.

- (b) Nothing in this Agreement excludes, restricts or modifies any right or remedy, or any guarantee, warranty or other term or condition, implied or imposed by any legislation which cannot lawfully be excluded or limited.

32 Step-in

32.1 EFG' right to take action

- (a) If:
 - (i) any default or non-performance by the Supplier under this Agreement (in EFG' reasonable opinion) materially adversely affects the performance of any critical EFG function; and
 - (ii) either:
 - (A) the default or non-performance is incapable of being remedied; or
 - (B) the Supplier fails to remedy the default or non-performance within the period as notified by EFG (acting reasonably),

then, EFG or its nominee may with 2 Business Days' notice to the Supplier, at its option, take control of all or part of the Services and, in doing so, may take such other action as is reasonably necessary to restore the affected EFG function.

- (b) EFG will return control of the Services to the Supplier once the default or non-performance by the Supplier has been remediated and the Services to EFG has fully been restored.
- (c) If the default or non-compliance (referred to in paragraph (a)) continues for a period of 90 days or more, from the date of receipt of the notice by Supplier, EFG shall terminate the applicable SOW pursuant to clause 29.1(a)(i).

32.2 The Supplier must co-operate

- (a) The Supplier must co-operate fully with EFG or its nominee and their agents and provide all reasonable assistance at no charge to restore the affected Services as soon as possible, including giving EFG and its nominees reasonable access to the Supplier Personnel and its resources that are used in the provision of the Services.
- (b) Without limiting paragraph (a), the Supplier must obtain all consents, approval and licences from third parties required for EFG to exercise its rights under clause 32.1 (EFG' right to take action).

32.3 Payment of Fees

The Supplier is not entitled to receive any Charges for that portion of the Services performed by EFG or its agent under clause 32.1 (EFG' right to take action).

32.4 The Supplier's liability

Nothing in clause 32.1 (EFG' right to take action) limits or increases the Supplier's liability to EFG with respect to any default or non-performance by the Supplier under this Agreement.

33 Indemnities

33.1 Supplier Indemnities

The Supplier indemnifies EFG, each EFG Group Member and their Representatives (**Indemnified Persons**) against any Loss suffered or incurred by the Indemnified Persons in connection with:

- (a) any breach of Law arising out of any breach of this Agreement by the Supplier or any of the Supplier's Representatives;
- (b) any fraud, wilful misconduct, repudiatory, grossly negligent or otherwise wrongful act or omission, by the Supplier or any of the Supplier's Representatives;
- (c) a breach of clause 25 (**Confidentiality and Privacy**) or clause 26 (**EFG Data**) by the Supplier or any of the Supplier Representatives;
- (d) loss of or damage to real or tangible property (including EFG Systems) to the extent caused by any act or omission of the Supplier or any of the Supplier's Representatives; and
- (e) any personal injury (including sickness or death) to the extent caused by any act or omission of the Supplier or any of the Supplier's Representatives.

33.2 EFG Indemnities

EFG indemnifies Supplier, each Supplier Group Member and their Representatives (**Indemnified Persons**) against any Loss suffered or incurred by the Indemnified Persons in connection with:

- (a) any third party claim brought against an Indemnified Person arising out of any breach of Law by EFG or any of the EFG Group Members;
- (b) any fraud, wilful misconduct, repudiatory, grossly negligent or otherwise wrongful act or omission, by EFG or any EFG Group Member;
- (c) a breach of clause 25 (**Confidentiality and Privacy**) by EFG or EFG Group Member;
- (d) loss of or damage to real or tangible property to the extent caused by any act or omission of EFG or EFG Group Member; and
- (e) any personal injury (including sickness or death) to the extent caused by any act or omission of EFG or EFG Group Member.

34 Liability

34.1 Exclusion of Consequential Loss

Neither party will be liable to the other party under this Agreement or a SOW for any Consequential Loss suffered or incurred by the other party arising out of or in connection with this Agreement.

34.2 Limitation of liability

- (a) Subject to clauses 34.1 (**Exclusion of Consequential Loss**) and 34.3 (**Exclusions from liability limitations**), the liability of either party to the other party is limited in the aggregate to the Charges paid and payable under this Agreement in the 15 months (excluding pass-through expenses and taxes, if any) immediately preceding the date on which the relevant liability accrued, whether such liability arises in contract, tort (including negligence), statute, equity or otherwise.
- (b) Subject to clauses 34.1 (**Exclusion of Consequential Loss**) and 34.3 (**Exclusions from liability limitations**), the liability of the Supplier arising from the indemnity in clause 33.1(c) for any breach of clause 25.5 (**Privacy**), including any fines, penalties or compensatory orders suffered or incurred by any Indemnified Person under clause 33.1 resulting from such breach, is limited in the aggregate to the Charges paid and payable under this Agreement in the 18 months (excluding pass-through expenses and taxes, if any) immediately preceding the date on which the relevant liability accrued, whether such liability arises in contract, tort (including negligence), statute, equity or otherwise.
- (c) The parties agree that for the purposes of:
 - (i) paragraph (a), the amount that is 15 months of the Charges paid and payable under this Agreement in the 15 months immediately preceding the date the relevant liability accrued, where the liability accrues in the first 15 months of the Agreement Term, is AUD 2,940,000; and
 - (ii) paragraph (b), the amount that is 18 months of the Charges paid and payable under this Agreement in the 18 months immediately preceding the date the relevant liability accrued, where the liability accrues in the first 18 months of the Term, is AUD 3,528,000.
- (d) In calculating the liability cap under this clause 34.2, "**paid and payable**" includes Charges:
 - (i) paid by EFG to the Supplier under this Agreement;
 - (ii) that have not been paid but which are payable by EFG to the Supplier under this Agreement; or
 - (iii) that have not been paid but which would be payable by EFG to the Supplier if the Supplier were to fully perform its obligations under this Agreement.

34.3 Exclusions from liability limitations

- (a) The exclusion and limitations of liability in clause 34.2 (**Limitation of liability**) do not apply to:
 - (i) EFG' liability to pay the Charges under and in accordance with this Agreement;
 - (ii) the indemnities granted under this Agreement except as provided under clause 34.2(b).

34.4 Civil Liability Act

The Supplier and EFG agree to exclude the operation of Part 4 of the *Civil Liability Act 2002* (NSW) from this Agreement.

35 Force Majeure

35.1 Suspension of obligations

An obligation of a party under this Agreement will be suspended for the time and to the extent that it is prevented from or delayed in complying with that obligation by an event of Force Majeure.

35.2 No relief

The occurrence of an event of Force Majeure does not relieve a party from performing its obligations:

- (a) under any Disaster Recovery Plans required by this Agreement;
- (b) if the delay or failure by it in performance or the occurrence of the event of Force Majeure could have been prevented by reasonable precautions taken by it or can reasonably be circumvented through the use by it of work around plans or (without undue expense) alternative services or other means; or
- (c) if the event of Force Majeure results from any intentional act or omission on the part of that party, except to the extent such fault was itself caused by an event of Force Majeure.

35.3 Responsibilities of the affected party

A party affected by an event of Force Majeure must promptly:

- (a) notify the other party and describe in reasonable detail the nature of the event of Force Majeure and its likely effect on the ability of the affected party to perform its obligations;
- (b) use all reasonable endeavours to avoid or remove the cause and perform its obligations as soon as possible provided that it is not obliged to settle an industrial dispute except on terms acceptable to it; and
- (c) take all reasonable steps to mitigate any losses caused to the other party and itself.

35.4 Agents and Subcontractors

Any failure to perform by a subcontractor or agent of the Supplier will not constitute an event of Force Majeure in respect of the Supplier unless the agent or subcontractor was itself subject to an event of a Force Majeure. The Supplier will not be entitled to any additional payment from EFG or for any additional costs it may incur as a result of the occurrence or the rectification of any Force Majeure event to which the Supplier, its subcontractors or agents are subject.

35.5 No Fault Termination

EFG may terminate any affected SOWs with immediate effect by giving notice to the Supplier if the Supplier has been prevented by Force Majeure from performing any of its

material obligations under this Agreement or a SOW for more than 30 days. Where a SOW is so terminated by EFG, the Supplier will be entitled to payment for work completed in accordance with this Agreement up to the date of termination. For clarification, EFG is not required to pay any fees under this Agreement for any Services that the Supplier is unable to provide as a result of an event of Force Majeure.

36 Insurance

36.1 Insurance Policies

The Supplier must at its cost take out and maintain during the Agreement Term, and for 3 years after the end of the Agreement Term:

- (a) professional indemnity insurance with a minimum cover of US\$5 million per claim and US\$5 million in the annual aggregate;
- (b) public liability insurance with a minimum cover of US\$5 million per claim;
- (c) products liability insurance with a minimum cover of US\$5 million in the annual aggregate;
- (d) cyber risk insurance with a minimum cover of US\$5 million per claim; and
- (e) insurance in respect of all claims and liabilities arising whether at common law or under statute relating to workers' compensation or employer's liability from any accident or injury to any person employed by the Supplier in connection with this Agreement and the Supplier must ensure that all of its subcontractors are similarly insured in respect of their employees. The insurance must comply with the Laws of the relevant jurisdiction in which the obligations of this Agreement are carried out.

36.2 Insurance requirements

The Supplier must ensure that each insurance policy required under this Agreement:

- (a) is taken out with Standard & Poor's rating of A – or equivalent rating with other recognised agencies;
- (b) in respect of clause 36.1(b):
 - (i) includes EFG as a principal under the policy, but only to the extent of the Supplier's acts or omissions; and
 - (ii) includes a cross liability clause.

36.3 Certificate of currency

The Supplier must, upon request from EFG, provide to EFG a certificate from its insurer or insurance broker confirming that the insurance requirements referred to in clause 36.1 (**Insurance Policies**) have been satisfied and are in effect.

Part I Other

37 Notices

37.1 Notices

(a) A notice must be in writing and will be deemed to have been given and received if:

- (i) left at the address of the addressee;
- (ii) sent by prepaid ordinary post (airmail if posted to or from a place outside Australia) to the address of the addressee; or
- (iii) emailed to the email address of the addressee,

in each case as set out in paragraph (b), as updated from time to time by a party under paragraph (c).

(b) For the purposes of this clause 37.1 (**Notices**), the relevant address and email address of each party is:

- (i) for EFG:



(c) Where a party notifies the other party of an updated address or email address, the other party must use those updated contact details for the purpose of giving notices under this Agreement.

- (d) The following notices must not be given by email (but a courtesy copy of that notice must be sent by email):
 - (i) a Dispute Notice;
 - (ii) a notice of breach given under of this Agreement; and
 - (iii) a notice terminating this Agreement.

37.2 Notice takes effect

A notice takes effect from the time it is received unless a later time is specified in it.

37.3 Deemed receipt

- (a) In the case of a letter sent by post, unless there is evidence to the contrary, the letter is taken to be received on the third (or seventh, if posted to or from a place outside Australia) day after posting.
- (b) In the case of a facsimile, production of a transmission report by the machine from which the facsimile was sent which indicates that the facsimile was sent in its entirety to the facsimile number of the recipient notified for the purpose of this clause shall be prima facie evidence that the facsimile has been received.
- (c) In the case of an email:
 - (i) production of a delivery notification statement from the computer from which the email was sent which indicates that the email was sent in its entirety to the email address of the recipient will be prima facie evidence that the email has been received;
 - (ii) where there is no delivery notification statement from the computer from which the email was sent, the date and the time of dispatch of the email will be prima facie evidence of the date and time that the email was received; and
 - (iii) where an "out of office" reply, delivery error or similar response is returned in response to that email, the email will not be taken to be received and the sender will use the alternative methods of sending the notice in accordance with this clause.

38 Employment

38.1 Offer of employment

- (a) No later than 7 July 2020, the Supplier must offer in writing to employ the Employees for the SOWs referred in clause 1.3 (a) (i) & (ii):
 - (i) conditional on:
 - (A) EFG providing all Employees information, including, existing compensation details to Supplier by 15 June, 2020;
 - (B) Completion of due diligence by 22 June, 2020;

- (c) SOWs referred in clause 1.3 (a) (i) & (ii) being executed between the parties on or before 30 June, 2020;
 - (ii) effective from 1 September 2020 (**Transfer Date**); and
 - (iii) on remuneration no less favourable to the Employees on an overall basis than their remuneration with EFG as at the Commencement Date or as of 15 June 2020 whichever is earlier.
- (b) The Supplier must, no later than 5 Business Days before an offer is due to be made under paragraph (a), provide EFG with a confirmation that it has shared the proposed offer with employee in respect of any of the Employees nominated by EFG.
- (c) The Supplier's offer of employment must require an Employee to advise EFG or the Supplier of the Employee's acceptance within 5 Business Days of the date of the offer, or, if the Employee is on leave, within 10 Business Days of the date the Employee returns from leave.
- (d) If an Employee advises EFG that the Employee accepts the Supplier's offer of employment, then EFG must immediately notify the Supplier of this.
- (e) If an Employee advises the Supplier that the Employee accepts the Supplier's offer of employment, then the Supplier must immediately notify EFG of this.
- (f) EFG must use its best endeavours to encourage the Employees to accept the Supplier's offer of employment, including by:
 - (i) recommending to each Employee that they accept the offer; and
 - (ii) providing the Supplier with access to the Employees whether at EFG' premises or elsewhere during business hours for the purpose of discussing the offer.

38.2 Release of and payments to Transferring Employees

- (a) On the Transfer Date, EFG must:
 - (i) release the Transferring Employees from employment with EFG, with effect from the Transfer Date; and
 - (ii) pay to each Transferring Employee all amounts due to or accrued by that Transferring Employee for the period up to and including the Transfer Date including any entitlement to remuneration, compensation or benefits (including bonuses) arising out of their employment, but not including any amounts for their accruals of personal/carer's leave, annual leave, leave loading or long service leave.
- (b) On and from the Transfer Date, the Supplier is responsible for the remuneration, compensation or benefits of the Transferring Employees due to or accrued by that Transferring Employee after the Transfer Date.

38.3 Responsibility for Non-transferring Employees

EFG is responsible for the remuneration, compensation or benefits of Non-transferring Employees.

38.4 Indemnity

- (a) EFG indemnifies Supplier, each Supplier Group Member and their Representatives (Indemnified Persons) against any Loss or claim suffered or incurred by the Indemnified Persons in connection with:
 - (i) any claims or Losses arising due to Transferring Employees for the period up to and including the Transfer Date, to the extent that the Loss or claim arises out of EFG' failure to comply with this Agreement; or
 - (ii) for any third party claims or Losses, personal injury or death caused by its Non-transferring Employees as well as the Transferring Employees up to the Transfer Date.
- (b) Supplier indemnifies EFG, each EFG Group Member and their Representatives (Indemnified Persons) against any Loss or claim suffered or incurred by the Indemnified Persons in connection with
 - (i) its breach of obligations mentioned in clause 38 (Employment); or
 - (ii) any claims or Losses arising due to Transferring Employees for the period after and including the Transfer Date.

38.5 Employee Retention

- (a) Supplier agrees to retain any Transferring Employees, and to use those Transferring Employees to provide Services to EFG, for a minimum period of 6 months after the Transfer Date unless such Transferring Employees terminate their employment contract at their will.
- (b) After the end of the period referred to in paragraph (a), the Supplier may cease using a Transferring Employee to provide Services to EFG, provided that in the 2 months prior to ceasing to use such Transferring Employee, all Service Levels were met.

39 General

39.1 No partnership or employment relationship

Nothing in this Agreement:

- (a) may be deemed to constitute a partnership, joint venture, agency or other legal relationship between EFG and the Supplier other than that of Supplier and purchaser and/or service Supplier and recipient; and
- (b) authorises either party to waive any obligation for which the other party may be responsible or to incur any liability on behalf of the other party.

39.2 Further assurances

Each party must promptly execute all documents and do all things that the other party from time to time reasonably requires of it to effect, perfect or complete the provisions of this Agreement or any SOW and any transaction contemplated by them.

39.3 Prohibition and enforceability

Any provision of, or the application of any provision of, this Agreement or any SOW and any transaction contemplated by them which is:

- (a) prohibited in any jurisdiction is, in that jurisdiction, ineffective only to the extent of that prohibition; and
- (b) void, illegal or unenforceable in any jurisdiction does not affect the validity, legality or enforceability of that provision in any other jurisdiction or of the remaining provisions in that or any other jurisdiction.

39.4 Severability

- (a) If a provision of this Agreement or any SOW is void, unenforceable or illegal in a jurisdiction:
 - (i) it is severed from the remainder for the purposes of enforcement in that jurisdiction; and
 - (ii) the remainder has full force and effect and the validity or enforceability of that provision in any other jurisdiction is not affected.
- (b) Clause 39.4(a) has no effect if the severance:
 - (i) alters the basic nature of this Agreement or the relevant SOW; or
 - (ii) is contrary to public policy.

39.5 Amendment

A provision of, or a right under, this Agreement or any SOW may not be varied, supplemented or replaced except in writing executed by the parties.

39.6 Waivers

- (a) A provision of, or a right created under, this Agreement or any SOW may not be waived except in writing executed by the party granting the waiver. For clarity, no inspection, audit, approval, acceptance, attendance, permission or comment by any authorised user will:
 - (i) constitute a waiver of any default or acceptance of any act or omission of the Supplier; or
 - (ii) affect the Supplier's obligation to perform this Agreement in accordance with its terms.
- (b) A failure by a party to insist upon a strict performance of any of the terms and conditions of this Agreement or a SOW is not deemed to be a waiver of any subsequent breach or default of the terms and conditions of this Agreement or any SOW.

39.7 Rights cumulative

The rights, powers and remedies of EFG provided in this Agreement or any SOW are cumulative with and not exclusive of any right, power or remedy provided by Law.

39.8 Exercise of rights

- (a) Except as expressly provided to the contrary in this Agreement or any SOW, a party may exercise a right, power or remedy at its discretion, and separately or concurrently with another right, power or remedy.
- (b) A single or partial exercise of a right, power or remedy by a party does not prevent a further exercise of that, or of any other, right, power or remedy.
- (c) Failure by a party to exercise, or a delay in exercising, a right, power or remedy does not prevent its exercise.

39.9 Indemnities

- (a) Each indemnity in this Agreement or any SOW is a continuing obligation, separate and independent from the other obligations of the parties and survives termination of this Agreement or the relevant SOW.
- (b) It is not necessary for a party to incur expense or make payment before enforcing a right of indemnity conferred by this Agreement or any SOW.

39.10 Entire Agreement

This Agreement, and each and every SOW under this Agreement, constitutes the entire Agreement between the parties concerning the transactions contemplated by them and supersedes all previous negotiations and Agreements concerning this transaction.

39.11 Governing law and submission to jurisdiction

- (a) This Agreement and each SOW will be interpreted under and governed by the Laws of the State of New South Wales, Australia.
- (b) Each party irrevocably submits to the exclusive jurisdiction of the courts of the State of New South Wales, Australia, and the courts of appeal from them.

39.12 Costs and expenses

Each party must pay its own costs and expenses in relation to the negotiation, preparation, execution, delivery, stamping, registration, completion, variation and discharge of this Agreement and any SOWs.

39.13 Accrued rights

The expiry or termination of this Agreement or any SOW does not affect:

- (a) either party's rights in respect of any breach occurring before termination; or
- (b) the obligations of the parties to make a payment under this Agreement or any SOW due before termination.

39.14 Assignment

- (a) EFG may assign its rights, or novate its rights and obligations, under this Agreement to:
 - (i) any EFG Group Member;

- (ii) any third party that is of equivalent financial standing to EFG; or
- (iii) any other third party (not referred to in paragraphs (i) or (ii)) with the prior written consent of the Supplier, not to be unreasonably withheld,

and the Supplier must execute any document reasonably requested by EFG to give effect to the assignment or novation.

- (b) The Supplier may not assign any of its rights, or novate its rights and obligations, under this Agreement without the prior written consent of EFG, not to be unreasonably withheld.
- (c) A breach of clause 39.14(b) by the Supplier entitles EFG to terminate this Agreement.

39.15 To extent not excluded by Law

The rights, duties and remedies granted or imposed under the provisions of this Agreement and each SOW operate to the extent not excluded by Law.

39.16 Counterparts

This Agreement may be executed in any number of counterparts which, when taken together, will constitute one instrument.

39.17 Attorneys

Each attorney executing this Agreement states that the attorney has no notice of the revocation of the power of attorney appointing that attorney.

Execution page

Executed as an agreement.



Name of Director

Name of Company Secretary



Name of witness (print)

11 Jun 20

Schedule 1 Dictionary (cl. 1.2)

1 Dictionary

In this Agreement:

Acceptance means that EFG has issued an Acceptance Certificate in respect of the relevant Deliverable.

Acceptance Certificate means a written certification issued by EFG that EFG is satisfied that Acceptance Tests have been completed in respect of a Deliverable.

Acceptance Date means the date on which EFG issues an Acceptance Certificate in respect of the relevant Deliverables in accordance with the Acceptance Testing process set out in clause 9 (**Acceptance**).

Acceptance Tests mean the tests specified in a SOW, or if none are specified, such tests and other reviews as EFG considers necessary to determine whether a Deliverable is fully operational and functional and fully complies with the requirements of this Agreement. **Acceptance Testing** has the same meaning.

Agreement means this agreement, which comprises the documents referred to in clause 1.1(a).

Agreement Term has the meaning given in clause 3.1(a).

Approved Subcontractors means any persons engaged by the Supplier to perform, or to assist the Supplier with the performance or delivery of, the Services, as approved by EFG under clause 14.1(c).

Business Continuity means the ability to provide for the continuous operation of the Supplier's business in the event of a Disaster.

Business Continuity Plan means the Business Continuity and Disaster Recovery plan developed by the Supplier and agreed between the parties, as attached to this Agreement as Schedule 9.

Business Day means a day on which banks are open for business excluding Saturdays, Sundays and public holidays in Sydney.

Change of Control means, in relation to an entity, that:

- (a) there occurs a material change in control of that entity having regard to any matter which relates to control of a corporation, including legal or beneficial ownership of shares, voting rights, rights to receive income or capital and rights to appoint directors; or
- (b) that entity disposes of all or substantially all of its assets.

Change Proposal has the meaning given in clause 22(a).

Charges mean the fees for the provision of Services, as set out in a SOW.

Claim means any allegation, claim, proceeding, suit or demand of any nature whether present or future, fixed or unascertained, actual or contingent, at Law, in equity, under statute or otherwise.

Commencement Date means the date of signature of this Agreement by EFG.

Condition Precedent has the meaning given in clause 2(a).

Confidential Information, in relation to a Disclosing Party, means:

- (a) all information relating to the business or affairs of the Disclosing Party disclosed, communicated or delivered to, learnt by, developed by or which otherwise comes to the knowledge of or into the possession of, the Recipient under or in connection with a SOW; and
- (b) the terms of this Agreement and any SOW,

but excludes any such information which the Recipient can establish:

- (c) is or became generally available in the public domain otherwise than through a breach of confidence;
- (d) was independently developed by the Recipient; or
- (e) was rightfully received by the Recipient from a third party who is under no obligation of confidentiality in respect of that information and who has not obtained that information either directly or indirectly as a result of a breach of any duty of confidence owed to the Disclosing Party.

For the avoidance of doubt, information developed by the Supplier specifically for EFG under this Agreement is Confidential Information of EFG and not of the Supplier.

Conflict of Interest means any conflict of interest of any nature including:

- (a) any actual or threatened litigation, proceeding or claim or allegation by the Supplier, its Related Bodies Corporate or any of its Representatives against or in any way involving EFG, that relates to matters other than this Agreement;
- (b) any actual or threatened litigation, proceeding, claim or allegation against or in any way involving the Supplier, its Related Bodies Corporate or any of its Representatives, which materially adversely affect the delivery of the Services;
- (c) any proven or alleged breach or default by the Supplier of any Law, agreement, order or award binding on the Supplier, whether admitted or contested, which may materially affect in an adverse manner the ability of EFG to obtain the Services from the Supplier; or
- (d) the supply or proposed supply of goods or services to or from a person in a manner or to an extent that may:
 - (i) adversely affect the ability of EFG to obtain the Services from the Supplier;
 - (ii) adversely affect EFG' ability to compete in the market; or
 - (iii) prejudice or be likely to prejudice the confidentiality or privacy of any Confidential Information of EFG.

Consequential Loss means any Loss suffered or incurred by a party as a result of a breach of this Agreement by the other party which does not arise naturally (that is, according to the usual course of things) from the breach. Direct EFG Loss is not Consequential Loss. **Corporations Act** means *Corporations Act 2001* (Cth).

Created IP has the meaning given in clause 27.3(a).

Cut Off Date means 60 days from the Commencement Date.

Data Breach means any:

- (a) unauthorised access to, or unauthorised disclosure of, any Personal Information; or
- (b) loss of any Personal Information.

Delay Notice has the meaning given in clause 7.2(a).

Deliverable means any items to be produced by the Supplier under this Agreement or any SOW, as part of the Services.

Direct EFG Loss means Loss incurred by EFG in relation to:

- (a) reasonable cost of remedying or assessing a breach of this Agreement by the Supplier, where the Supplier has failed to do so in whole or part as required by this Agreement;
- (b) reasonable cost of undertaking workarounds (including manual workarounds) or taking other steps to mitigate the effects of a breach of this Agreement by the Supplier;
- (c) reasonable cost of procuring replacement goods or services or undertaking replacement works for goods, services or works that the Supplier has failed to supply in whole or part in accordance with this Agreement (including the costs of re-tendering and costs associated with transferring responsibility for the provision of the Services from the Supplier to a new service Supplier);
- (d) reasonable cost of recovering or recreating data or records from the last back-up maintained by EFG, its Representatives, or the Supplier (as applicable) which have been lost, destroyed, deleted or corrupted as a result of a breach of this Agreement by the Supplier; and
- (e) any fines or penalties resulting from any breach of Law as a result of a breach of this Agreement by the Supplier.

Disabling Code means any computer virus or other code which is intended to or would have the effect of intercepting, accessing, copying, disrupting, impairing, denying or otherwise adversely affecting security, performance, integrity, reliability, access to or use of any information technology, data, equipment, network, including worms, spyware, adware, key loggers, trojans and any new types of programmed threats that may be classified.

Disaster means an event (which may include a Force Majeure) that causes, or is likely to cause, a material adverse effect on the performance of the Supplier's obligations under this Agreement that cannot be managed within the context of normal operating procedures including interruption, destruction or other loss of operational capacity.

Disaster Recovery Plan means a plan providing for the continuous operation of the Services in the event of a Disaster.

Disclosing Party means a party which discloses or gives access to its Confidential Information to the other party or whose business or affairs are the subject matter of the Confidential Information.

Disengaged Services means the Services the subject of expiry or termination.

Disengagement Commencement Date means the date from which Disengagement Services are provided.

Disengagement Period has the meaning given in clause 30.3(a) (in respect of Disengagement Services and Disengaged Services).

Disengagement Plan has the meaning given in clause 30.1(a)(i).

Disengagement Services means the services to be provided by the Supplier as set out in a relevant Disengagement Plan.

Dispute means any dispute which arises out of or relates to this Agreement or any SOW.

Documentation has the meaning given in clause 6 (**Documentation**).

Employees means the following employees of EFG:

Current employees of the Manila operation

Expiry Date means a date 5 years and 8 months from the Commencement Date.

Extended SOW Terms has the meaning given in the relevant SOW (where applicable).

Force Majeure means:

- (a) riot, war, invasion or act of foreign enemies, acts of terrorism, or hostilities;
- (b) ionising radiation or contamination, radio activity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive, toxic, explosive or other hazardous properties of any explosive assembly or nuclear component;
- (c) epidemic or pandemic;
- (d) pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds; and
- (e) earthquakes, flood, fire or other physical natural disaster, but excluding weather conditions regardless of severity.

Further Term means a period of 12 months each.

Government Authority includes any governmental or semi-governmental or local government authority, administrative or judicial board, tribunal or court, department, commission, public authority, minister, statutory corporation, authority or instrumentality.

GST means a goods and services tax, or a similar value added tax, levied or imposed under the GST Law.

GST Law has the meaning given to it in the *A New Tax System (Goods and Services Tax) Act 1999* (Cth).

EFG Data means data of any kind of a EFG Group Member or of any customer or supplier of a EFG Group Member (other than the Supplier), and includes:

- (a) data in respect of a EFG Group Member's business or operations;
- (b) patient data, health or prescribing records of clinicians and other clinician data and third party service provider data (for example, reports or scans provided by third parties in respect of a patient);
- (c) data that may cause EFG reputational or brand damage or may cause EFG to become subject to fines or other action by applicable governmental or regulatory authorities if it is the subject of unauthorised information disclosure, loss or corruption;
- (d) Personal Information; or
- (e) data that is corporate proprietary or financial information such as may be subject to the *Corporations Act 2001* (Cth) or would be the subject of intellectual property rights owned by EFG.

EFG Group means EFG and its Related Bodies Corporate from time to time.

EFG Group Member means a member of the EFG Group.

EFG Material means all material provided by EFG to the Supplier for the purposes of this Agreement or a SOW.

EFG Policies means all of EFG' written policies, guidelines, procedures, standards, operating principles, technology strategies, technical data and application architectures and incident, problem and change management processes as set out in Schedule 7 and as notified by EFG to the Supplier from time to time through the vendor portal.

EFG Representative means the relevant EFG contact or their delegate, or such other replacement contact as is notified by EFG to the Supplier from time to time.

EFG Systems means any of EFG' systems which EFG provide the Supplier with access, in connection with this Agreement.

EFG Task means any task or activity (which may include the provision of particular software, hardware or materials or EFG procuring the performance of a task or activity by a third party) expressly identified as a "EFG Task" in this Agreement.

Initial SOW Term has the meaning given in each SOW.

Insolvency Event in relation to a party (**insolvent party**) means the happening of any one or more of the following events:

- (a) the insolvent party ceases or takes steps to cease to conduct its business in the normal manner;
- (b) the insolvent party enters into or resolves to enter into any arrangement, composition or compromise with or assignment for the benefit of its creditors or any class of them;

- (c) the insolvent party is unable to pay its debts when they are due or is deemed under the *Corporations Act 2001* (Cth) to be insolvent;
- (d) a liquidator or provisional liquidator is appointed to the insolvent party or jurisdiction a receiver, receiver and manager, official manager, trustee or similar official is appointed over any of the assets or undertakings of the insolvent party;
- (e) an application or order is made or a resolution is passed for the winding up of the insolvent party; or
- (f) any act or event analogous or having a substantially similar effect to any of the events specified in paragraphs (a) to (e) inclusive of this definition.

Intellectual Property Rights includes any and all industrial and intellectual property rights of any nature both in Australia and throughout the world, and includes any patents, registered designs and domain names, copyright (including future copyright), trade or service marks (whether registered or unregistered), trade secrets, know-how, rights in relation to circuit layouts, or other proprietary right or right to registration of such rights.

Investment Costs includes costs included in the XYZ bid relating to Transition Services which shall be specified in the respective SOWs.

Key Personnel means the persons identified as key personnel in a SOW and includes any additional such persons or replacement persons approved by EFG.

Key Role means the roles identified as “key roles” in a SOW.

Law means any statute, regulation, by-law, ordinance or subordinate legislation in force from time to time in any relevant jurisdiction relating to the performance of the party's obligations under this Agreement, and includes industry codes of conduct.

Loss means all liability, loss, damage, cost, and expense, charge, outgoing or payment including reasonable legal fees and disbursements and costs of investigation, litigation, settlement, judgment, interest and penalties, for which a party is liable, whether or not yet paid or met by that party.

Material Breach means:

- (a) the Supplier's failure to achieve a Milestone by its relevant Milestone Date;
- (b) a breach of a material term of this Agreement; and
- (c) any other breach of this Agreement that has an adverse effect on EFG that is not immaterial.

Milestone means any milestone set out in a SOW.

Milestone Date means the date by which a Milestone must be achieved, as specified in a SOW.

Modern Slavery has the meaning given in the *Modern Slavery Act 2018* (Cth).

Moral Rights means the rights conferred by Part IX of the *Copyright Act 1968* (Cth).

Non-transferring Employee means an Employee other than a Transferring Employee.

Other Supplier means a third party that provides goods or services to EFG or any EFG Group Member.

Personal Information means personal information, as that term is defined in the *Privacy Act 1988* (Cth), that is provided to, or obtained or accessed by, the Supplier in the course of performing its obligations under this Agreement.

Personnel means, in respect of a party, that party's directors, officers, employees, contractors and professional advisers.

Privacy Legislation means:

- (a) the *Privacy Act 1988* (Cth);
- (b) any legislation (to the extent that such legislation applies to the EFG Group or the Supplier or any other recipient of Personal Information) from time to time in force in any:
 - (i) Australian jurisdiction (which includes the Commonwealth of Australia and any State or Territory of Australia); or
 - (ii) non-Australian jurisdiction (to the extent that any EFG Group Member, any Personal Information or the Supplier is subject to the Laws of that jurisdiction),

affecting Personal Information or privacy.

Rate Card means the rate card set out at Schedule 5 (**Rate Card**).

Recipient means the party which receives, possesses or is given access to Confidential Information from the Disclosing Party.

Related Bodies Corporate means the meaning given to that term in the *Corporations Act 2001*.

Representative means, in respect of a party, any person acting for or on behalf of the party and includes any director, officer, employee, contractor or professional adviser of that party.

Schedule means a schedule to this Agreement.

Service Credit means any service credits as set out in a SOW.

Service Level means the service levels as set out in a SOW.

Services means:

- (a) the services, activities, functions and responsibilities described in this Agreement and the SOWs; and
- (b) all other services, activities, functions and responsibilities that are necessary or incidental to, or customary for, the provision of the services, activities, functions and responsibilities referred to in paragraph (a).

SOW or Statement of Work means the statement of work, agreed and executed by the parties and which forms part of Agreement (**SOWs**). A form of the SOW is incorporated in

Schedule 2 to this Agreement which may be used by parties in the same form for execution of a new SOW.

SOW Commencement Date means the date specified as such in a SOW.

SOW Term has the meaning given in clause 3.2(a).

SOW Termination Trigger means an event specified in a SOW, the occurrence of which will give rise to a right of termination under clause 29.1 (**Termination by EFG for cause**).

Supplier has the meaning given in the Parties section of this Agreement.

Supplier Competitors means the persons listed in Schedule 8.

Supplier Group means the Supplier and each of its Related Bodies Corporate.

Supplier Group Member means a member of the Supplier Group.

Supplier Infringement Claim means any Claim alleging that the Supplier Material, Created IP, Third Party Material or the Services, or their exploitation or possession by EFG, a EFG Group Member or their Representatives, infringe the Intellectual Property Rights of any person.

Supplier Material means any material existing prior to commencement of the relevant Services, or developed outside the scope of the Services, that is proprietary to the Supplier or licensed to the Supplier by a third party.

Supplier Personnel means the Key Personnel and other personnel of the Supplier who perform the Services, including any Approved Subcontractors and their personnel.

Supplier Representative means the relevant Supplier contact or their delegate, or such other replacement contact as is notified by the Supplier to EFG from time to time.

Suspension Notice has the meaning given in clause 28(a).

Third Party Material means software or any other work the Intellectual Property Rights in which is owned by a third party (including open source software).

Transferring Employee means an Employee who accepts the Supplier's offer of employment under clause 38.1.

WHS Act means the *Work Health and Safety Act 2011* (NSW) and equivalent legislation in other jurisdictions.

WHS Regulation means the *Work Health and Safety Regulation 2017* (NSW) and equivalent legislation in other jurisdictions.

2 Interpretation

In this Agreement the following rules of interpretation apply unless the contrary intention appears:

- (a) headings are for convenience only and do not affect the interpretation of this Agreement;

- (b) the singular includes the plural and vice versa;
- (c) words that are gender neutral or gender specific include each gender;
- (d) where a word or phrase is given a particular meaning, other parts of speech and grammatical forms of that word or phrase have corresponding meanings;
- (e) the words 'such as', 'including', 'particularly' and similar expressions are not used as, nor are intended to be, interpreted as words of limitation;
- (f) a reference to:
 - (i) a person includes a natural person, partnership, joint venture, government agency, association, corporation or other body corporate;
 - (ii) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (iii) a party includes its successors and permitted assigns;
 - (iv) a document includes all amendments or supplements to that document;
 - (v) a clause, term, party, schedule or attachment is a reference to a clause or term of, or party, schedule or attachment to this Agreement;
 - (vi) an agreement other than this Agreement includes an undertaking, or legally enforceable arrangement or understanding, whether or not in writing; and
 - (vii) a monetary amount is in Australian dollars;
- (g) when the day on which something must be done is not a Business Day, that thing must be done on the following Business Day;
- (h) in determining the time of day, where relevant to this Agreement, the relevant time of day is:
 - (i) for the purposes of giving or receiving notices, the time of day where a party receiving a notice is located; or
 - (ii) for any other purpose under this Agreement, the time of day in the place where the party required to perform an obligation is located; and
- (i) no rule of construction applies to the disadvantage of a party because that party was responsible for the preparation of this Agreement or any part of it.

Schedule 2 Form of SOW (cl. 1.3)



SOW Template.docx

Schedule 3 Governance (cl. 20.1)



Schedule 3 -
Governance Framew

Schedule 4 Standards (cl. 18.3)

Australian Auditing Standards

Australian Accounting Standards

The above, as relevant to EFG and defined and shared as part of the operational policies.

Schedule 5 Rate Card

Rates	Yr 1	Yr 2	Yr 3	Yr 4	Yr 5
India					
Accounts Receivable					
Accounts Receivable Officer – Pathology	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
Accounts Receivable Officer – Imaging	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
Accounts Receivable Phase II					
GBS-MasterData-Pathology Officer	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
GBS-MasterData-Pathology Manager	AUD 37,000	AUD 38,480	AUD 40,019	AUD 41,620	AUD 43,285
GBS-Billing-Pathology Officer	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
GBS-R&A-Pathology Officer	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
GBS-R&A-Pathology Manager	AUD 42,000	AUD 43,680	AUD 45,427	AUD 47,244	AUD 49,134
GBS-R&A-Imaging Officer	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
GBS-QAM_Imaging Officer	AUD 24,225	AUD 25,194	AUD 26,202	AUD 27,250	AUD 28,340
General Accounting					
Assistant Accountant	AUD 27,546	AUD 28,648	AUD 29,794	AUD 30,985	AUD 32,225
Financial Accountant	AUD 28,584	AUD 29,727	AUD 30,916	AUD 32,153	AUD 33,439
Senior Financial Accountant	AUD 34,069	AUD 35,432	AUD 36,849	AUD 38,323	AUD 39,856
Philippines					
GBS					
GBS-Billing-Pathology Officer	AUD 38,200	AUD 39,728	AUD 41,317	AUD 42,970	AUD 44,689
GBS-Billing-Pathology Senior Officer	AUD 39,200	AUD 40,768	AUD 42,399	AUD 44,095	AUD 45,858
GBS-Billing-Pathology Manager	AUD 70,250	AUD 73,060	AUD 75,982	AUD 79,022	AUD 82,183
GBS-Collections-Imaging Officer	AUD 41,700	AUD 43,368	AUD 45,103	AUD 46,907	AUD 48,783
GBS-Collections-Imaging Senior Officer	AUD 42,700	AUD 44,408	AUD 46,184	AUD 48,032	AUD 49,953
GBS-Collections-Pathology Officer	AUD 44,750	AUD 46,540	AUD 48,402	AUD 50,338	AUD 52,351
GBS-Customer Service-Pathology Officer	AUD 43,450	AUD 45,188	AUD 46,996	AUD 48,875	AUD 50,830
GBS-Customer Service-Pathology Senior Officer	AUD 55,500	AUD 57,720	AUD 60,029	AUD 62,430	AUD 64,927
GBS-Customer Service-Pathology Lead Officer	AUD 57,350	AUD 59,644	AUD 62,030	AUD 64,511	AUD 67,091
GBS-MasterData-Pathology Manager	AUD 64,650	AUD 67,236	AUD 69,925	AUD 72,722	AUD 75,631
GBS-QAM_Imaging Manager	AUD 67,850	AUD 70,564	AUD 73,387	AUD 76,322	AUD 79,375
Accounts Receivable					
Accounts Receivable Officer - Pathology	AUD 38,000	AUD 39,520	AUD 41,101	AUD 42,745	AUD 44,455
Accounts Receivable Officer - Imaging	AUD 38,000	AUD 39,520	AUD 41,101	AUD 42,745	AUD 44,455
Administration Officer	AUD 38,000	AUD 39,520	AUD 41,101	AUD 42,745	AUD 44,455
Customer Service					
Customer Service Officer	AUD 38,000	AUD 39,520	AUD 41,101	AUD 42,745	AUD 44,455
Customer Service Manager	AUD 57,800	AUD 60,112	AUD 62,516	AUD 65,017	AUD 67,618

The rates are provided for 5 years from the Commencement Date of the Agreement. For subsequent years, the rates will be subject to clause 11.6 of the Agreement.

For avoidance of doubt, in the event parties intend to enter into a new SOW, the rates will be applicable from the year of commencement of such SOW and not year 1 of the above

table. Example: If after 2 years' time, parties enter into a new SOW then the applicable rates will be as per column year 3 and not year 1 of the above table.

Refer to the attached excel spreadsheet which contains the final price submission relevant to the EFG Group [based on original RFP]. Whilst the assumptions remain valid in the final price submission, the business case is being updated to reflect current start and end dates, and details including pricing will be reflected in the respective SOWs.



Copy of EFG BPO RFP -
XYZ Revised C

Schedule 6 Security Requirements

1 System protection

The Supplier must:

- (a) ensure that there is no unauthorised access to EFG Systems or EFG Data from any Supplier Systems. The Supplier must store any EFG Data in its possession or control in an environment that is logically isolated from the Supplier's other customers' data; [
- (b) protect against external and environmental threats and report on any data breaches;
- (c) assist with tests, audits and reviews as required by EFG;
- (d) maintain a secure cryptographic key store.

2 Monitoring and pro-active maintenance

The Supplier must, in respect of the Supplier Systems:

- (a) implement proactive monitoring of intrusion attempts (including but not limited to DOS, DDOS attacks). Report any breaches to EFG (as per clause 26.5);
- (b) ensure that the security ecosystem is monitored and reviewed daily to ensure the environment is enhanced to meet current and emerging threats; and
- (c) maintain detailed activity, error and exception logs to aid auditing and diagnosis of issues. This activity logging to be made available to EFG on request.

3 Threat and Vulnerability Management

The Supplier must:

- (a) test the Supplier System every 12 months to against security vulnerabilities (penetration test) and provide the results to EFG;
- (b) ensure that any significant security risks that the Supplier becomes aware of, that may expose EFG or any EFG Data, are communicated to EFG;
- (c) allow EFG to conduct independent penetration tests to test the security posture of the Supplier System; and
- (d) remediate security findings identified by EFG in a timely manner.

4 Data Protection

The Supplier must ensure that:

- (a) all EFG Data is encrypted at disk level as a minimum;

- (b) EFG Data is only transferred over secure encrypted channels (e.g. HTTPS);
- (c) no production data to be loaded into a test and development environment;
- (d) all Personal Information is de-identified before uploading to non-production zones, with artefacts attesting to the de-identification process;
- (e) a written policy on EFG Data access and handling is in place, including NDAs for anyone accessing sensitive and medical information;

5 Remote access

The Supplier must ensure that:

- (a) any Supplier Representatives requiring access to the EFG System to provide the Services will utilise EFG remote access solution to access systems within EFG Systems;
- (b) Supplier Representatives will need the appropriate background checks prior to gaining access to EFG systems.
- (c) no generic accounts are used for remote access. Account will be only be provisioned using strong authentication; and
- (d) all remote access is to be monitored while in use.
- (e) remote access will be deactivated after use.

6 Access Control

The Supplier must ensure that:

- (a) granular role-based user access levels will be configured for the Services;
- (b) traceability of all access and activities within production systems is enabled;
- (c) monthly role / user access reports are provided to EFG;
- (d) user inactivity timeout/system lockout is implemented;
- (e) users are provisioned with unique identifiers when accessing the application with no generic accounts;
- (f) user accounts should be configured with minimum 8 characters and full complexity (uppercase, lowercase, numbers and symbols) with password expiry (every 90 days) and history (15 previous passwords) set;
- (g) administrator accounts are configured with minimum 14 character and full complexity (uppercase, lowercase, numbers and symbols);
- (h) accounts are locked out after 5 incorrect attempts;
- (i) session should have a timeout of 10 minutes of inactivity; and

- (j) all default accounts are disabled after implementation.

7 Incident Response

The Supplier must ensure that:

- (a) a standard security incident event management response procedure (including notifying EFG) is available for all security incidents;
- (b) for security incidents that relate to the potential exposure of EFG Data, a written or verbal response to requests is provided within 4 hours; and
- (c) policies and procedures relating to data breach events are published and understood by staff and contractors (3rd parties).

8 Audit/Reporting

The Supplier must:

- (a) promptly share reports by Independent auditors with regards to Supplier Systems;
- (b) provide monthly reports on threat assessments, security incidents experienced, responses taken, and security measures implemented;
- (c) furnish assurance on how Services, network and EFG Data are secured;
- (d) provide full traceability of user actions (UAT and PROD).

9 Roles and Responsibilities

The Supplier must configure granular role-based user access levels for the Services.

Schedule 7 EFG Policies



Schedule
7_Policies_Path_IMG

Schedule 8 Supplier Competitors



List of XYZ
Competitors.docx

The parties agree that the Supplier Competitor list may be amended from time to time.

Schedule 9 Business Continuity Plan



**Standard
Redundancy and Mi**

Schedule 10 Supplier Confidentiality Agreement



XYZ Australia Mutual
NDA.docx